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DEVOCIÓN

Employee Handbook

(Effective March 2026)

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WELCOME NEW EMPLOYEE

Congratulations and welcome!

We have hired you because we believe you have the skills and the potential to succeed at Devoción and expect that you will perform the tasks assigned to you to the best of your abilities. We believe that your hard work and commitment will not only benefit Devoción, but will help give you and all employees a sense of pride and accomplishment.

This Employee Handbook is provided to you to familiarize you with Devoción's current employment policies, benefits and procedures and to answer some of the questions you may have concerning your employment. Please take the time to carefully read through this Employee Handbook and keep it as a reference guide.

The following policies were developed to create a respectful and productive working environment. This Employee Handbook is not a contract, but a guide to the policies of Devoción and what Devoción expects from you. Please note that exceptions to these policies may be made when, in the opinion of Devoción, circumstances so require. Devoción reserves the right to revise this Employee Handbook at any time, including implementing policies and practices which may not appear in this Employee Handbook and to change, interpret, withdraw, or add any policies or practices of Devoción at any time and without notice. All such changes, deletions, or additions must be in writing. No oral statements or representations can change the provisions of this Employee Handbook. The information in this Employee Handbook supersedes all information covered in previous handbooks and policies.

Your manager will be providing an acknowledgement form. Please complete and return it after reading through our handbook.

We are glad to have you as a member of the team. We want you and Devoción to have a successful and collaborative employment experience that is beneficial to both you and Devoción. If, at any time, you have any questions concerning this Employee Handbook, or need assistance or guidance, please do not hesitate to contact me or any of the members of our management team.

We hope that your experience here will be challenging, enjoyable, and rewarding.

Sincerely,

Steven Sutton

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INTRODUCTION

EMPLOYMENT AT WILL

Employment with Devoción is at will. This means your employment may be terminated for any or no reason, with or without cause or notice, at any time by you or by Devoción.

None of Devoción's personnel documents and benefit plans, including this Employee Handbook, constitutes, or is intended to constitute, an express or implied contract guaranteeing continued employment for any employee. No manager, supervisor, or other employee has any authority to enter into a contract of employment - express or implied - that changes or alters the at will employment relationship. Only the CEO has the authority to enter into an employment agreement that alters the at will employment relationship and any such agreement must be in writing and signed by the employee and the CEO.

This employment at will policy is the sole and entire agreement between you and Devoción, as to the duration of employment and the circumstances under which employment may be terminated. With the exception of employment at will, all terms and conditions of employment may be modified at the sole discretion of Devoción at any time.

ACCURACY OF INFORMATION

We rely upon the accuracy of information presented during the hiring process and throughout employment. Any misrepresentations, falsifications, or material omissions in any of this information or data may result in exclusion from further consideration for employment or, if already hired, may result in termination of employment.

EMPLOYEE ELIGIBILITY AND WORK AUTHORIZATION

Devoción is committed to employing only individuals who are authorized to work in the United States and who comply with applicable immigration and employment law. As a condition of employment, every individual must provide satisfactory evidence of their identity and legal authority to work in the United States within three business days of commencing employment. If the employee cannot verify their right to work in the United States within three business days of employment, the Company will be required to terminate their employment immediately.

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EQUAL EMPLOYMENT OPPORTUNITY

It is Devoción's policy to provide equal employment opportunities to all qualified persons without regard to age, race (or traits historically associated with race, including, but not limited to, hair texture and protective hairstyles), religion or creed, color, national origin or ethnicity/ancestry, alienage or citizenship/immigration status, sex, transgender status, gender dysphoria, gender identity and/or expression, physical or mental disability, pregnancy (including childbirth, related medical conditions, pregnancy outcomes, and lactation needs), veteran, military, or uniformed servicemember status, marital status or partnership status, predisposing genetic characteristic, sexual and reproductive health decisions, status as a victim of domestic violence, stalking, and sex offenses, caregiver status or familial status, credit history, unemployment status, union affiliation, certain height and weight statuses, certain arrest and conviction records, or lawful source of income, all as applicable under any federal, state, or local law, as well as any other legally protected category in accordance with federal, state, and local laws and regulations, including an individual's known relationship or association with a member or members of a protected category, in the employment of personnel. It is the intent and desire of our Company that equal opportunities will be provided in employment, promotions, training, wages, benefits, and all other privileges, terms and conditions of employment. All personnel actions, such as recruiting, selection and placement, training, benefits, promotions and upgrading, transfers, layoffs, suspensions, terminations, and social and recreational programs are applicable to all persons on a non-discriminatory basis. Any questions regarding any of the above should be discussed in detail with the Company's management.

In addition, the Company does not discriminate against any employee or applicant in making case assignments, does not invite or honor discriminatory requests by clients and does not "code" applications or other documents to record the protected status of any applicant or employee.

ANTI-SEXUAL HARASSMENT POLICY

Purpose and Goals

Devoción is committed to maintaining a workplace free from harassment and discrimination. Sexual harassment is a form of workplace discrimination that subjects an employee to inferior conditions of employment due to their gender, gender identity, gender expression (perceived or actual), and/or sexual orientation. Sexual harassment is often viewed simply as a form of gender-based discrimination, but the Company recognizes that discrimination can be related to or affected by other identities beyond gender. Under the New York State Human Rights Law, it is illegal to discriminate based on sex, sexual orientation, gender identity or expression, age, race, creed, color, national origin, military status, disability, pre-disposing genetic characteristics, familial status, marital status, criminal history, or status as a victim of domestic violence. Our different identities impact our understanding of the world and how

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others perceive us. For example, an individual's race, ability, or immigration status may impact their experience with gender discrimination in the workplace. While this policy is focused on sexual harassment and gender discrimination, the methods for reporting and investigating discrimination based on other protected identities are the same. The purpose of this policy is to teach employees to recognize discrimination, including discrimination due to an individual's intersecting identities, and provide the tools to take action when it occurs. All employees, managers, and supervisors are required to work in a manner designed to prevent sexual harassment and discrimination in the workplace. This policy is one component of the Company's commitment to a discrimination-free work environment.

Goals of this Policy

Sexual harassment and discrimination are against the law. After reading this policy, employees will understand their right to a workplace free from harassment. Employees will also learn what harassment and discrimination look like, what actions they can take to prevent and report harassment, and how they are protected from retaliation after taking action. The policy will also explain the investigation process into any claims of harassment. Employees are encouraged to report sexual harassment or discrimination by filing a complaint internally with the Company. Employees can also file a complaint with a government agency or in court under federal, state, or local antidiscrimination laws. To file an employment complaint with the New York State Division of Human Rights, please visit https://dhr.ny.gov/complaint. To file a complaint with the United States Equal Employment Opportunity Commission, please visit https://www.eeoc.gov/filing-charge-discrimination.

Sexual Harassment and Discrimination Prevention Policy

1. The Company's policy applies to all employees, applicants for employment, and interns, whether paid or unpaid. The policy also applies to additional covered individuals. It applies to anyone who is (or is employed by) a contractor, subcontractor, vendor, consultant, or anyone providing services in our workplace. These individuals include persons commonly referred to as independent contractors, gig workers, and temporary workers. Also included are persons providing equipment repair, cleaning services, or any other services through a contract with the Company. For the remainder of this policy, we will use the term "covered individual" to refer to these individuals who are not direct employees of the company.

2. Sexual harassment is unacceptable. Any employee or covered individual who engages in sexual harassment, discrimination, or retaliation will be subject to action, including appropriate discipline for employees. In New York, harassment does not need to be severe or pervasive to be illegal. Employees and covered individuals should not feel discouraged from reporting harassment because they do not believe it is bad enough, or conversely because they do not want to see a colleague fired over less severe behavior. Just as harassment can happen in different degrees, potential discipline for engaging in

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sexual harassment will depend on the degree of harassment and might include education and counseling. It may lead to suspension or termination when appropriate.

3. Retaliation is prohibited. Any employee or covered individual that reports an incident of sexual harassment or discrimination, provides information, or otherwise assists in any investigation of a sexual harassment or discrimination complaint is protected from retaliation. No one should fear reporting sexual harassment if they believe it has occurred. So long as a person reasonably believes that they have witnessed or experienced such behavior, they are protected from retaliation. Any employee of the Company who retaliates against anyone involved in a sexual harassment or discrimination investigation will face disciplinary action, up to and including termination. All employees and covered individuals working in the workplace who believe they have been subject to such retaliation should inform a supervisor, manager, or Human Resources (which may be contacted at hr@devocion.com). All employees and covered individuals who believe they have been a target of such retaliation may also seek relief from government agencies, as explained below in the section on Legal Protections.

4. Discrimination of any kind, including sexual harassment, is a violation of our policies, is unlawful, and may subject the Company to liability for the harm experienced by targets of discrimination. Harassers may also be individually subject to liability and employers or supervisors who fail to report or act on harassment may be liable for aiding and abetting such behavior. Employees at every level who engage in harassment or discrimination, including managers and supervisors who engage in harassment or discrimination or who allow such behavior to continue, will be penalized for such misconduct.

5. The Company will conduct a prompt and thorough investigation that is fair to all parties. An investigation will happen whenever management receives a complaint about discrimination or sexual harassment, or when it otherwise knows of possible discrimination or sexual harassment occurring. The Company will keep the investigation confidential to the extent possible. If an investigation ends with the finding that discrimination or sexual harassment occurred, the Company will act as required. In addition to any required discipline, the Company will also take steps to ensure a safe work environment for the employee(s) who experienced the discrimination or harassment. All employees, including managers and supervisors, are required to cooperate with any internal investigation of discrimination or sexual harassment.

6. All employees and covered individuals are encouraged to report any harassment or behaviors that violate this policy. All employees will have access to a complaint form to report harassment and file complaints (a sample is attached to this Handbook). Use of this form is not required. For anyone who would rather make a complaint verbally, or by email, these complaints will be treated with equal priority. An employee or covered individual who prefers not to report harassment to their manager or employer may instead report

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harassment to the New York State Division of Human Rights and/or the United States Equal Employment Opportunity Commission. Complaints may be made to both the employer and a government agency.

Managers and supervisors are **required** to report any complaint that they receive, or any harassment that they observe or become aware of, to their superior manager or Human Resources (which may be contacted at hr@devocion.com).

7. This policy applies to all employees and covered individuals, such as contractors, subcontractors, vendors, consultants, or anyone providing services in the workplace, and all must follow and uphold this policy. This policy must be provided to all employees in person or digitally through email upon hiring and will be posted prominently in all work locations. For those offices operating remotely, in addition to sending the policy through email, it will also be available on the organization's shared network.

What Is Sexual Harassment?

Sexual harassment is a form of gender-based discrimination that is unlawful under federal, state, and (where applicable) local law. Sexual harassment includes harassment on the basis of sex, sexual orientation, self-identified or perceived sex, gender expression, gender identity, and the status of being transgender. Sexual harassment is not limited to sexual contact, touching, or expressions of a sexually suggestive nature. Sexual harassment includes all forms of gender discrimination including gender role stereotyping and treating employees differently because of their gender.

Understanding gender diversity is essential to recognizing sexual harassment because discrimination based on sex stereotypes, gender expression and perceived identity are all forms of sexual harassment. The gender spectrum is nuanced, but the three most common ways people identify are cisgender, transgender, and non-binary. A cisgender person is someone whose gender aligns with the sex they were assigned at birth. Generally, this gender will align with the binary of male or female. A transgender person is someone whose gender is different than the sex they were assigned at birth. A non-binary person does not identify exclusively as a man or a woman. They might identify as both, somewhere in between, or completely outside the gender binary. Some may identify as transgender, but not all do. Respecting an individual's gender identity is a necessary first step in establishing a safe workplace.

Sexual harassment is unlawful when it subjects an individual to inferior terms, conditions, or privileges of employment. Harassment does not need to be severe or pervasive to be illegal. It can be any harassing behavior that rises above petty slights or trivial inconveniences. Every instance of harassment is unique to those experiencing it, and there is no single boundary between petty slights and harassing behavior. However, the Human Rights Law specifies that whether harassing conduct is considered petty or trivial is to be viewed from the standpoint of a reasonable victim of discrimination with the same protected characteristics. Generally, any behavior in which an employee or covered individual is treated worse because of their gender

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(perceived or actual), sexual orientation, or gender expression is considered a violation of the Company's policy. The intent of the behavior, for example, making a joke, does not neutralize a harassment claim. Not intending to harass is not a defense. The impact of the behavior on a person is what counts. Sexual harassment includes any unwelcome conduct which is either directed at an individual because of that individual's gender identity or expression (perceived or actual), or is of a sexual nature when:

- The purpose or effect of this behavior unreasonably interferes with an individual's work performance or creates an intimidating, hostile or offensive work environment. The impacted person does not need to be the intended target of the sexual harassment;

- Employment depends implicitly or explicitly on accepting such unwelcome behavior; or

- Decisions regarding an individual's employment are based on an individual's acceptance to or rejection of such behavior. Such decisions can include what shifts and how many hours an employee might work, project assignments, as well as salary and promotion decisions.

There are two main types of sexual harassment:

- Behaviors that contribute to a **hostile work environment** include, but are not limited to, words, signs, jokes, pranks, intimidation, or physical violence which are of a sexual nature, or which are directed at an individual because of that individual's sex, gender identity, or gender expression. Sexual harassment also consists of any unwanted verbal or physical advances, sexually explicit derogatory, or discriminatory statements which an employee finds offensive or objectionable, causes an employee discomfort or humiliation, or interferes with the employee's job performance.

- Sexual harassment also occurs when a person in authority tries to trade job benefits for sexual favors. This can include hiring, promotion, continued employment or any other terms, conditions, or privileges of employment. This is also called **quid pro quo** harassment.

Any employee or covered individual who feels harassed is encouraged to report the behavior so that any violation of this policy can be corrected promptly. Any harassing conduct, even a single incident, can be discrimination and is covered by this policy.

Examples of Sexual Harassment

The following describes some of the types of acts that may be unlawful sexual harassment and that are strictly prohibited. **This list is just a sample of behaviors and should not be considered exhaustive**. Any employee who believes they have experienced sexual harassment, even if it does not appear on this list, should feel encouraged to report it:

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- Physical acts of a sexual nature, such as:
    - Touching, pinching, patting, kissing, hugging, grabbing, brushing against another employee's body, or poking another employee's body; or
    - Rape, sexual battery, molestation, or attempts to commit these assaults, which may be considered criminal conduct outside the scope of this policy (please contact local law enforcement if you wish to pursue criminal charges).

- Unwanted sexual comments, advances, or propositions, such as:
    - Requests for sexual favors accompanied by implied or overt threats concerning the target's job performance evaluation, a promotion, or other job benefits;
        - This can include sexual advances/pressure placed on a service industry employee by customers or clients, especially those industries where hospitality and tips are essential to the customer/employee relationship;
    - Subtle or obvious pressure for unwelcome sexual activities; or
    - Repeated requests for dates or romantic gestures, including gift-giving.

- Sexually oriented gestures, noises, remarks or jokes, or questions and comments about a person's sexuality, sexual experience, or romantic history which create a hostile work environment. This is not limited to interactions in person. Remarks made over virtual platforms and in messaging apps when employees are working remotely can create a similarly hostile work environment.

- Sex stereotyping, which occurs when someone's conduct or personality traits are judged based on other people's ideas or perceptions about how individuals of a particular sex should act or look:
    - Remarks regarding an employee's gender expression, such as wearing a garment typically associated with a different gender identity; or
    - Asking employees to take on traditionally gendered roles, such as asking a woman to serve meeting refreshments when it is not part of, or appropriate to, her job duties.

- Sexual or discriminatory displays or publications anywhere in the workplace, such as:
    - Displaying pictures, posters, calendars, graffiti, objects, promotional material, reading materials, or other materials that are sexually demeaning or pornographic. This includes such sexual displays on workplace computers or cell phones and sharing such displays while in the workplace;
    - This also extends to the virtual or remote workspace and can include having such materials visible in the background of one's home during a virtual meeting.

- Hostile actions taken against an individual because of that individual's sex, sexual orientation, gender identity, or gender expression, such as:

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- Interfering with, destroying, or damaging a person's workstation, tools or equipment, or otherwise interfering with the individual's ability to perform the job;
- Sabotaging an individual's work;
- Bullying, yelling, or name-calling;
- Intentional misuse of an individual's preferred pronouns; or
- Creating different expectations for individuals based on their perceived identities:
  - Dress codes that place more emphasis on women's attire;
  - Leaving parents/caregivers out of meetings.

Who Can Be a Target of Sexual Harassment?

Sexual harassment can occur between any individuals, regardless of their sex or gender. Harassment does not have to be between members of the opposite sex or gender. New York Law protects employees and all covered individuals described earlier in the policy. **Harassers can be anyone in the workplace**. A supervisor, a supervisee, or a coworker can all be harassers. Anyone else in the workplace can also be harassers including an independent contractor, contract worker, vendor, client, customer, constituent, or visitor.

Sexual harassment does not happen in a vacuum and discrimination experienced by an employee can be impacted by biases and identities beyond an individual's gender. For example:

- Placing different demands or expectations on black women employees than white women employees can be both racial and gender discrimination;
- An individual's immigration status may lead to perceptions of vulnerability and increased concerns around illegal retaliation for reporting sexual harassment; or
- Past experiences as a survivor of domestic or sexual violence may lead an individual to feel re-traumatized by someone's behaviors in the workplace.

Individuals bring personal history with them to the workplace that might impact how they interact with certain behavior. It is especially important for all employees to be aware of how words or actions might impact someone with a different experience than their own in the interest of creating a safe and equitable workplace.

Where Can Sexual Harassment Occur?

Unlawful sexual harassment is not limited to the physical workplace itself. It can occur while employees are traveling for business or at employer or industry sponsored events or parties. Calls, texts, emails, and social media usage by employees or covered individuals can constitute unlawful workplace harassment, even if they occur away from the workplace premises, on personal devices, or during non-work hours.

Sexual harassment can occur when employees are working remotely from home as well. Any behaviors outlined above that leave an employee feeling uncomfortable, humiliated, or

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unable to meet their job requirements constitute harassment even if the employee or covered individual is at home when the harassment occurs. Harassment can happen on virtual meeting platforms, in messaging apps, and after working hours between personal cell phones.

Retaliation

Retaliation is unlawful and is any action by an employer or supervisor that punishes an individual upon learning of a harassment claim, that seeks to discourage a worker or covered individual from making a formal complaint or supporting a sexual harassment or discrimination claim, or that punishes those who have come forward. These actions need not be job-related or occur in the workplace to constitute unlawful retaliation. For example, threats of physical violence outside of work hours or disparaging someone on social media would be covered as retaliation under this policy.

Examples of retaliation may include, but are not limited to:

- Demotion, termination, denying accommodations, reduced hours, or the assignment of less desirable shifts;
- Publicly releasing personnel files;
- Refusing to provide a reference or providing an unwarranted negative reference;
- Labeling an employee as “difficult” and excluding them from projects to avoid “drama”;
- Undermining an individual’s immigration status; or
- Reducing work responsibilities, passing over for a promotion, or moving an individual’s desk to a less desirable office location.

Such retaliation is unlawful under federal, state, and (where applicable) local law. The New York State Human Rights Law protects any individual who has engaged in “protected activity.” Protected activity occurs when a person has:

- Made a complaint of sexual harassment or discrimination, either internally or with any government agency;
- Testified or assisted in a proceeding involving sexual harassment or discrimination under the Human Rights Law or any other anti-discrimination law;
- Opposed sexual harassment or discrimination by making a verbal or informal complaint to management, or by simply informing a supervisor or manager of suspected harassment;
- Reported that another employee has been sexually harassed or discriminated against; or
- Encouraged a fellow employee to report harassment.

Even if the alleged harassment does not turn out to rise to the level of a violation of law, the individual is protected from retaliation if the person had a good faith belief that the practices were unlawful. However, the retaliation provision is not intended to protect persons making intentionally false charges of harassment.

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Reporting Sexual Harassment

Everyone must work toward preventing sexual harassment, but leadership matters. Supervisors and managers have a special responsibility to make sure employees feel safe at work and that workplaces are free from harassment and discrimination. Any employee or covered individual is encouraged to report harassing or discriminatory behavior to a supervisor, manager, or Human Resources (which may be contacted at hr@devocion.com). Anyone who witnesses or becomes aware of potential instances of sexual harassment should report such behavior to a supervisor, manager, their superior manager or Human Resources.

Reports of sexual harassment may be made verbally or in writing. A written complaint form is attached if an employee would like to use it, but the complaint form is not required. Employees who are reporting sexual harassment on behalf of other employees may use the complaint form and should note that it is on another employee's behalf. A verbal or otherwise written complaint (such as an email) on behalf of oneself or another employee is also acceptable.

Employees and covered individuals who believe they have been a target of sexual harassment may at any time seek assistance in additional available forums, as explained below in the section on Legal Protections.

Supervisory Responsibilities

Supervisors and managers have a responsibility to prevent sexual harassment and discrimination. All supervisors and managers who receive a complaint or information about suspected sexual harassment, observe what may be sexually harassing or discriminatory behavior, or for any reason suspect that sexual harassment or discrimination is occurring, are required to report such suspected sexual harassment to Human Resources (which may be contacted at hr@devocion.com). Managers and supervisors should not be passive and wait for an employee to make a claim of harassment. If they observe such behavior, they must act.

Supervisors and managers can be disciplined if they engage in sexually harassing or discriminatory behavior themselves. Supervisors and managers can also be disciplined for failing to report suspected sexual harassment or allowing sexual harassment to continue after they know about it.

Supervisors and managers will also be subject to discipline for engaging in any retaliation.

While supervisors and managers have a responsibility to report harassment and discrimination, supervisors and managers must be mindful of the impact that harassment and a subsequent investigation has on victims. Being identified as a possible victim of harassment and questioned about harassment and discrimination can be intimidating, uncomfortable and re-traumatizing for individuals. Supervisors and managers must accommodate the needs of

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individuals who have experienced harassment to ensure the workplace is safe, supportive, and free from retaliation for them during and after any investigation.

Bystander Intervention

Any employee witnessing harassment as a bystander is encouraged to report it. A supervisor or manager that is a bystander to harassment is **required** to report it. There are five standard methods of bystander intervention that can be used when anyone witnesses harassment or discrimination and wants to help.

1. A bystander can interrupt the harassment by engaging with the individual being harassed and distracting them from the harassing behavior;
2. A bystander who feels unsafe interrupting on their own can ask a third party to help intervene in the harassment;
3. A bystander can record or take notes on the harassment incident to benefit a future investigation;
4. A bystander might check in with the person who has been harassed after the incident, see how they are feeling and let them know the behavior was not ok; and
5. If a bystander feels safe, they can confront the harassers and name the behavior as inappropriate. When confronting harassment, physically assaulting an individual is never an appropriate response.

Though not exhaustive, and dependent on the circumstances, the guidelines above can serve as a brief guide of how to react when witnessing harassment in the workplace. Any employee witnessing harassment as a bystander is encouraged to report it. A supervisor or manager that is a bystander to harassment is required to report it.

Complaints and Investigations of Sexual Harassment

All complaints or information about sexual harassment will be investigated, whether that information was reported in verbal or written form. An investigation of any complaint, information, or knowledge of suspected sexual harassment will be prompt, thorough, and started and completed as soon as possible. The investigation will be kept confidential to the extent possible. All individuals involved, including those making a harassment claim, witnesses, and alleged harassers deserve a fair and impartial investigation.

Any employee may be required to cooperate as needed in an investigation of suspected sexual harassment. The Company will take disciplinary action against anyone engaging in retaliation against employees who file complaints, support another's complaint, or participate in harassment investigations.
The Company recognizes that participating in a harassment investigation can be uncomfortable and has the potential to retraumatize an employee. Those receiving claims and leading investigations will handle complaints and questions with sensitivity toward those participating.

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While the process may vary from case to case, investigations will be done in accordance with the following steps. Upon receipt of a complaint, the Company:

1. Will conduct a prompt review of the allegations, assess the appropriate scope of the investigation, and take any interim actions (for example, instructing the individual(s) about whom the complaint was made to refrain from communications with the individual(s) who reported the harassment), as appropriate. If complaint is verbal, request that the individual completes the complaint form in writing. If the person reporting prefers not to fill out the form, the Company will prepare a complaint form or equivalent documentation based on the verbal reporting;

2. Will take steps to obtain, review, and preserve documents sufficient to assess the allegations, including documents, emails or phone records that may be relevant to the investigation. The
   Company will consider and implement appropriate document request, review, and preservation measures, including for electronic communications;

3. Will seek to interview all parties involved, including any relevant witnesses;

4. Will create a written documentation of the investigation (such as a letter, memo or email), which contains the following:
   a. A list of all documents reviewed, along with a detailed summary of relevant documents;
   b. A list of names of those interviewed, along with a detailed summary of their statements;
   c. A timeline of events;
   d. A summary of any prior relevant incidents disclosed in the investigation, reported or unreported; and
   e. The basis for the decision and final resolution of the complaint, together with any corrective action(s).

5. Will keep the written documentation and associated documents in a secure and confidential location;

6. Will promptly notify the individual(s) who reported the harassment and the individual(s) about whom the complaint was made that the investigation has been completed and implement any corrective actions identified in the written document; and

7. Will inform the individual(s) who reported of the right to file a complaint or charge externally as outlined in the next section.

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Legal Protections and External Remedies

Sexual harassment is not only prohibited by the Company, but it is also prohibited by state, federal, and, where applicable, local law.

The internal process outlined in the policy above is one way for employees to report sexual harassment. Employees and covered individuals may also choose to pursue legal remedies with the following governmental entities. While a private attorney is not required to file a complaint with a governmental agency, you may also seek the legal advice of an attorney.

New York State Division of Human Rights

The New York State Human Rights Law (HRL), N.Y. Executive Law, art. 15, § 290 *et seq.*, applies to all employers in New York State and protects employees and covered individuals, regardless of immigration status. A complaint alleging violation of the Human Rights Law may be filed either with the New York State Division of Human Rights (DHR) or in New York State Supreme Court.

Complaints of sexual harassment filed with DHR may be submitted any time **within three years** of the harassment. If an individual does not file a complaint with DHR, they can bring a lawsuit directly in state court under the Human Rights Law, **within three years** of the alleged sexual harassment. An individual may not file with DHR if they have already filed a HRL complaint in state court.

Complaining internally to the Company does not extend your time to file with DHR or in court. The three years are counted from the date of the most recent incident of harassment.

You do not need an attorney to file a complaint with DHR, and there is no cost to file with DHR.

DHR will investigate your complaint and determine whether there is probable cause to believe that sexual harassment has occurred. Probable cause cases receive a public hearing before an administrative law judge. If sexual harassment is found at the hearing, DHR has the power to award relief. Relief varies but it may include requiring your employer to take action to stop the harassment, or repair the damage caused by the harassment, including paying of monetary damages, punitive damages, attorney's fees, and civil fines.

DHR's main office contact information is: NYS Division of Human Rights, One Fordham Plaza, Fourth Floor, Bronx, New York 10458. You may call (718) 741-8400 or visit: www.dhr.ny.gov.

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Go to dhr.ny.gov/complaint for more information about filing a complaint with DHR. The website has a digital complaint process that can be completed on your computer or mobile device from start to finish. The website has a complaint form that can be downloaded, filled out, and mailed to DHR as well as a form that can be submitted online. The website also contains contact information for DHR's regional offices across New York State.

Call the DHR sexual harassment hotline at **1(800) HARASS3** for more information about filing a sexual harassment complaint. This hotline can also provide you with a referral to a volunteer attorney experienced in sexual harassment matters who can provide you with limited free assistance and counsel over the phone.

The United States Equal Employment Opportunity Commission

The United States Equal Employment Opportunity Commission (EEOC) enforces federal anti-discrimination laws, including Title VII of the 1964 federal Civil Rights Act, 42 U.S.C. § 2000e *et seq.* An individual can file a complaint with the EEOC anytime within 300 days from the most recent incident of harassment. There is no cost to file a complaint with the EEOC. The EEOC will investigate the complaint and determine whether there is reasonable cause to believe that discrimination has occurred. If the EEOC determines that the law may have been violated, the EEOC will try to reach a voluntary settlement with the employer. If the EEOC cannot reach a settlement, the EEOC (or the Department of Justice in certain cases) will decide whether to file a lawsuit. The EEOC will issue a Notice of Right to Sue permitting workers to file a lawsuit in federal court if the EEOC closes the charge, is unable to determine if federal employment discrimination laws may have been violated, or believes that unlawful discrimination occurred but does not file a lawsuit.

Individuals may obtain relief in mediation, settlement, or conciliation. In addition, federal courts may award remedies if discrimination is found to have occurred. In general, private employers must have at least 15 employees to come within the jurisdiction of the EEOC.

An employee alleging discrimination at work can file a "Charge of Discrimination." The EEOC has district, area, and field offices where complaints can be filed. Contact the EEOC by calling 1-800-669-4000 (TTY: 1-800-669-6820), visiting their website at www.eeoc.gov or via email at info@eeoc.gov.

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If an individual filed an administrative complaint with the New York State Division of Human Rights, DHR will automatically file the complaint with the EEOC to preserve the right to proceed in federal court.

Local Protections

Many localities enforce laws protecting individuals from sexual harassment and discrimination. An individual should contact the county, city or town in which they live to find out if such a law exists. For example, employees who work in New York City may file complaints of sexual harassment or discrimination with the New York City Commission on Human Rights. Contact their main office at Law Enforcement Bureau of the NYC Commission on Human Rights, 22 Reade Street, 1st Floor, New York, New York; call 311 or (212) 306-7450; or visit www.nyc.gov/html/cchr/html/home/home.shtml.

Contact the Local Police Department

If the harassment involves unwanted physical touching, coerced physical confinement, or coerced sex acts, the conduct may constitute a crime. Those wishing to pursue criminal charges are encouraged to contact their local police department.

Conclusion

The policy outlined above is aimed at providing employees at the Company and covered individuals an understanding of their right to a discrimination and harassment free workplace. All employees should feel safe at work. Though the focus of this policy is on sexual harassment and gender discrimination, the New York State Human Rights law protects against discrimination in several protected classes including sex, sexual orientation, gender identity or expression, age, race, creed, color, national origin, military status, disability, pre-disposing genetic characteristics, familial status, marital status, criminal history, or domestic violence survivor status. The prevention policies outlined above should be considered applicable to all protected classes.

POLICY AGAINST OTHER TYPES OF HARASSMENT AND DISCRIMINATION

Introduction

Beyond sexual harassment, the Company is also committed to providing a work environment that is free of other types of unlawful discrimination and harassment and strictly prohibits discrimination and harassment by or against any individuals involved in our operations,

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including employees regardless of their position, applicants, interns, vendors, contractors, sub-contractors, consultants and any other third party involved in our operations. Devoción prohibits unlawful discrimination, harassment, (including sexual harassment), and retaliation, as well as such conduct that does not rise to the level of being unlawful. This policy and Handbook are not designed or intended to limit Devoción authority to discipline or take remedial action for workplace conduct that Devoción deems unacceptable, regardless of whether that conduct satisfies the definition of unlawful discrimination, harassment (including sexual harassment), or retaliation.

If such discrimination or harassment is committed in the workplace by someone not employed by the Company, the reporting and complaint procedure in this policy should still be followed. The workplace includes: actual worksites, any setting in which work-related business is being conducted (whether during or after normal business hours), online and electronic interactions with Company employees and third parties involved in our operations, Company-sponsored events, and Company-owned/controlled property.

Harassment on the basis of any legally protected status is prohibited, including harassment based on age, race (or traits historically associated with race, including, but not limited to, hair texture and protective hairstyles), religion or creed, color, national origin or ethnicity/ancestry, alienage or citizenship/immigration status, sex, transgender status, gender dysphoria, gender identity and/or expression, physical or mental disability, pregnancy (including childbirth, related medical conditions, pregnancy outcomes, and lactation needs), veteran, military, or uniformed servicemember status, marital status or partnership status, predisposing genetic characteristic, sexual and reproductive health decisions, status as a victim of domestic violence, stalking, and sex offenses, caregiver status or familial status, credit history, unemployment status, union affiliation, certain height and weight statuses, certain arrest and conviction records, or lawful source of income, all as applicable under any federal, state, or local law, as well as any other legally protected category in accordance with federal, state, and local laws and regulations, including an individual's known relationship or association with a member or members of a protected category. Prohibited harassment may include behavior similar to the illustrations above pertaining to sexual harassment. It also includes, but is not limited to:

- Verbal conduct including taunting, jokes, threats, epithets, derogatory comments or slurs based on an individual's protected status;
- Visual and/or written conduct including derogatory posters, photographs, movies videos, or animations, calendars, cartoons, drawings, websites, emails, text messages or gestures based on an individual's protected status; and

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- Physical conduct including assault, unwanted touching or blocking normal movement because of an individual's protected status.

The Company prohibits unlawful discrimination, harassment, and retaliation, as well as such conduct that does not rise to the level of being unlawful. This policy is not designed or intended to limit the Company's authority to discipline or take remedial action for workplace conduct that the Company deems unacceptable, regardless of whether that conduct satisfies the definition of unlawful harassment, or retaliation.

Protection Against Retaliation

Retaliation is prohibited against any person covered by this policy who, in good faith: makes a complaint of discrimination and harassment, either internally or with a government agency, using the complaint procedures described below; objects to, opposes or speaks out against discrimination or harassment; participates in a discrimination or harassment investigation; encourages another person to report discrimination or harassment; or files, testifies, assists or participates in any manner in any investigation, proceeding or hearing conducted by a governmental enforcement agency.

Prohibited retaliation includes, but is not limited to, termination, demotion, suspension, failure to hire or consider for hire, publicly release of personnel files, failure to give equal consideration in making employment decisions, failure to make employment recommendations impartially, adversely affecting working conditions or otherwise denying any employment benefit. Retaliation is unlawful and a form of misconduct that will result in disciplinary action, up to and including termination of employment.

Individuals who believe that they or any other individual has been subjected to retaliation should report this concern using the complaint procedure set forth below.

Bystander Intervention

Individuals who observe conduct that may violate this policy are encouraged, but are not required, to take reasonable action to intervene. Methods to intervene may include interrupting the conduct, redirecting the situation to appropriate conduct, checking in with the person at whom the conduct was directed, alerting a supervisor to the situation, and making a report under this policy. Physical confrontation, violence, or assault is not an appropriate method of intervention. The intervening person must act in accordance with the Company's policies.

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Complaint Procedure

Individuals who believe that they or any other individual has been subjected to discrimination, harassment, including sexual harassment or retaliation should, as soon as possible, report it to their supervisor or Human Resources (which may be contacted at hr@devocion.com). Reports can be made verbally or in writing. Employees are not required to raise a complaint with their immediate supervisor, manager, or person who has engaged in the complained of conduct.

After a report is received, or the Company otherwise becomes aware of a possible violation of this policy, a fair, timely, thorough and objective investigation will be undertaken if needed and will reach reasonable conclusions based on the information collected. The Company will maintain confidentiality surrounding the investigation to the extent possible, consistent with a thorough and objective investigation, and to the extent permitted or required under applicable law. Both the person(s) raising the complaint and the person(s) about whom the complaint was made will be permitted to provide information that may be relevant to the investigation. The Company also will attempt to gather and preserve information, including any electronically stored information or physical evidence, and speak with witnesses, as applicable. Once the investigation is completed and a determination is made, the complaining party will be advised that the investigation has been completed and may be informed of the resolution. The individual about whom the complaint was made will be informed of the outcome and if the Company determines that this policy has been violated, will be subject to disciplinary action. The Company expects all employees to fully cooperate with any investigation conducted by the Company into a complaint of discrimination, harassment or retaliation.

Supervisory Responsibilities

All supervisors or managers who receive a complaint or information about suspected discrimination, harassment or retaliation, observe behavior that may violate this policy, or for any other reason suspect that discrimination, harassment, or retaliation is occurring, are required to report such suspected conduct to Human Resources (which may be contacted at hr@devocion.com).

In addition to being subject to discipline for engaging in discrimination, harassment or retaliation themselves, supervisors and managers will be subject to discipline (up to and including termination) for failing to report suspected discrimination, harassment or retaliation or otherwise knowingly allowing such conduct to continue.

Supervisors and managers must ensure the workplace is safe, supportive, and free from retaliation against those who raise complaints or act as witnesses both during and after any investigation.

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Discipline

If the Company determines that this policy has been violated, including in the event that a manager knowingly allows the policy to be violated without reporting it, prompt remedial action will be taken, commensurate with the severity of the offense, up to and including termination of employment. Appropriate action will also be taken to deter any such conduct in the future.

Good Faith Reporting

The initiation of a good faith complaint of discrimination, harassment or retaliation will not be grounds for disciplinary or other retaliatory action, even if the allegations cannot be substantiated or the employee was mistaken about aspects of the complaint. Any individual who makes a complaint that is demonstrated to be intentionally false may be subject to discipline, up to and including termination.

No Gender or Transgender, Gender Non-Conforming or Intersex Discrimination

In accordance with its Anti-Sexual Harassment Policy, the Company prohibits discrimination against and/or harassment of applicants, employees, and interns on the basis of their actual or perceived gender or actual or perceived status as an individual who is transgender, gender non-conforming or intersex.

Employees who engage with the public as part of their job duties are required to do so in a respectful, non-discriminatory manner by respecting gender diversity and ensuring that members of the public are not subject to discrimination of any kind, including but not limited discrimination based on their actual or perceived gender or actual or perceived status as an individual who is transgender, gender non-conforming or intersex (such as discrimination with respect to single-sex programs and facilities).

The Company evaluates all requests for accommodation (including requests for medical leaves) in a non-discriminatory manner. The Company's dress code and grooming standards are gender neutral, meaning they do not differentiate or impose restrictions or requirements based on gender or sex.

The Company allows employees to self-identify their names and genders and will use an individual's preferred name, title (e.g., Mr./ Ms.) and pronoun (e.g., he/him/his; she/her/hers; they/them/theirs; or ze/hir). Requests to be addressed by a certain name and/or pronoun do not require supporting documentation. If an employee is unsure what name, title or pronoun another individual prefers, that employee can ask the person how they would like to be addressed.

All employees have the right to use single-sex facilities, such as restrooms, consistent with their gender. To the extent possible, the Company will provide single-occupancy restrooms and/or private space within multi-user facilities for individuals with privacy concerns, but will not require

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use of a single-occupancy bathroom because an individual is transgender or gender non-conforming.

Non-Discrimination Concerning Sexual and Reproductive Health Decisions

In accordance with applicable law, the Company does not discriminate against employees based on their sexual and reproductive health decisions or those of their dependents. For purposes of this policy, "sexual and reproductive health decisions" include an individual's decisions as to whether to use a particular drug, device or medical service in relation to the individual's sexual or reproductive health, including the reproductive system and its functions. Such services include, but are not limited to: fertility-related medical procedures; sexually transmitted disease prevention, testing, and treatment; and family planning services and counseling, such as birth control drugs and supplies, emergency contraception, sterilization procedures, pregnancy testing, and abortion.

The Company commits that it will not:

(i) access information concerning an employee's sexual or reproductive health decisions, or those of the employee's dependent, without first obtaining the employee's informed and affirmative written consent; or

(ii) discriminate or retaliate against any employee with respect to compensation or any terms, conditions or privileges of employment because of the employee's sexual or reproductive health decisions, or those of the employee's dependent.

Employees subjected to unlawful discrimination or retaliation on the basis of reproductive health decision making can bring an action in court and may be entitled to certain remedies, including monetary and injunctive relief.

Employees who feel they have been subjected to discrimination or retaliation on the basis of their reproductive health decision making or that of a dependent, or to any other violation of this policy, should follow this *Complaint Procedure* set forth in this policy.

Other Information

Discrimination and harassment are illegal under the New York State Human Rights Law, Title VII of the federal Civil Rights Act of 1964, and some local laws including the New York City Human Rights Law. Employees may file a complaint with the federal Equal Employment Opportunity Commission, the New York State Division of Human Rights, the New York City Commission on Human Rights, another enforcement agency (if applicable), or in certain courts of law. Agencies accept and investigate charges of discrimination and harassment, including sexual harassment. Please note that there may be deadlines applicable to filing complaints with government agencies or seeking redress in a court of law. The Equal Employment Opportunity

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Commission has district, area, and regional offices and may be contacted by visiting www.eeoc.gov, emailing info@eeoc.gov, or by telephone at 1-800-669-4000 (TTY 1-800-669-6820). The New York State Division of Human Rights may be contacted by visiting www.dhr.ny.gov, by telephone at 718-741-8400, or by mail to One Fordham Plaza, Fourth Floor, Bronx, New York 10458. The New York State Division of Human Rights also maintains a toll-free hotline that provides counseling and accepts complaints regarding workplace sexual harassment. This hotline can be reached at 1-800-427-2773. The New York City Commission on Human Rights can be contacted by visiting http://www.nyc.gov/html/cchr/html/home/home.shtml or by telephone at (212) 306-7450. Employees subjected to unlawful discrimination or harassment may be entitled to certain remedies, including monetary damages, civil penalties, and injunctive relief (such as an order that certain action be taken or certain behavior stop). Individuals can also contact the town, city, or county in which they live or work to find out whether other local agencies may be able to receive complaints. Additional information, including the physical location of agency offices and the rules and requirements for filing complaints, can also be found at the respective agency websites. If an employee believes they have been the victim of a crime, they may contact their local police department.

DISABILITY ACCOMMODATION

Devoción will provide a reasonable accommodation to individuals with a known physical or mental disability, in accordance with applicable law. If you require an accommodation in order to perform your job, you should notify your manager or Human Resources (which may be contacted at hr@devocion.com), and request such an accommodation. Devoción will communicate with the employee and engage in an interactive process and cooperative dialogue to determine the nature of the issue and what, if any, reasonable accommodation(s) may be appropriate. In some cases, this interactive process and cooperative dialogue may be triggered without a request from the employee, such as when the Company receives notice from its own observation or another source that a medical impairment may be impacting the employee's ability to perform essential job functions.

Employees who believe they need an accommodation must specify, preferably in writing, what barriers or limitations prompted the request. The Company will evaluate information obtained from the employee, and possibly the employee's health care provider or another appropriate health care provider, regarding any reported or apparent barriers or limitations, and will then work with the employee to identify possible accommodations, if any, that will help to eliminate or otherwise address the barrier(s) or limitation(s). If an identified accommodation is reasonable and will not impose an undue hardship on the Company and/or a direct threat to the health and/or safety of the individual or others, Devoción will generally make the

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accommodation, or it may propose another reasonable accommodation which may also be effective. Employees are required to cooperate with this process by providing all necessary documentation supporting the need for accommodation and being willing to consider alternative accommodations when applicable.

RELIGIOUS ACCOMMODATION

Devoción will provide a reasonable accommodation to individuals for observance of religious holidays and sincerely held religious beliefs, in accordance with applicable law pursuant to an interactive process and cooperative dialogue. A reasonable accommodation is one that eliminates the conflict between an employee's religious beliefs, observances, or practices and the employee's job requirements without causing undue hardship to the Company. If you desire a religious accommodation, you should notify your manager or Human Resources (which may be contacted at hr@devocion.com) and request such an accommodation as far in advance as possible.

PREGNANCY, CHILDBIRTH, AND RELATED MEDICAL CONDITION ACCOMMODATION

Devoción observes Family and Medical Leave, New York Paid Family Leave, and accommodation-related leave regarding pregnancy, childbirth, and/or related medical conditions (as may be required by applicable law), but provides no additional or separate parental or bonding leave.

It is illegal for an employer such as the Company to refuse to provide a reasonable accommodation to a qualified applicant or employee for "known physical or mental limitations or needs" related to pregnancy, childbirth, or related medical conditions when there is no undue hardship incurred by the Company. "Known physical or mental limitations or needs" are those that the applicant, employee or their representative has communicated to the Company. Employees who wish to inform the Company of such a limitation or need and/or request a reasonable accommodation under this policy should contact your manager or Human Resources (which may be contacted at hr@devocion.com), preferably specifying in writing, what barriers, limitations, or needs prompted the request. The Company will evaluate the information provided regarding any reported or apparent barriers or limitations/needs and will then communicate with the applicant or employee and engage in an interactive process and cooperative dialogue to determine the nature of the limitation or need and what, if any, reasonable accommodation(s) may be appropriate.

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The Company will engage in an interactive process and cooperative dialogue with qualified employees to determine if a reasonable accommodation can be made for an employee that does not impose an undue hardship on the Company. The Company may be obligated to grant qualified employees a reasonable accommodation if no undue hardship is borne by the Company. You may be entitled to such accommodations as bathroom breaks; breaks to facilitate increased water intake or permission to carry or keep water near you while working; periodic rest if you stand for long periods of time; assistance with manual labor; changes to your work environment; and, unpaid medical leave, among other accommodations.

Employees who wish to request time away from work to accommodate a limitation or need related to pregnancy, childbirth, or a related medical condition should contact your manager or Human Resources (which may be contacted at hr@devocion.com). However, the Company will not require a qualified employee to take leave if another reasonable accommodation can be provided. As part of the interactive process and cooperative dialogue the Company reserves the right to request medical documentation from an employee to the extent permitted by applicable law. Employees who are absent from the workplace due to pregnancy, childbirth, or related medical conditions may choose to utilize paid time off in accordance with the Company's leave policies and may be eligible for short term disability benefits if the employee is disabled for at least seven consecutive days.

Attached to this Handbook is a "Pregnancy Accommodations at Work" notice containing additional information concerning your rights as a pregnant employee.

LACTATION ACCOMMODATION POLICY

Devoción provides paid break time for an employee to express breast milk for their nursing child for up to three years following the birth of the child, each time the employee has a reasonable need to express milk. Specifically, non-exempt employees will be provided up to thirty minutes of paid break time to express milk at a time. Employees may take lactation breaks of less than thirty minutes if they choose. Employees who need more than thirty minutes for a lactation break may use existing paid break time, or use scheduled meal periods, or may otherwise receive additional unpaid lactation break time under applicable law for a lactation break that may exceed thirty minutes. Non-exempt employees are prohibited from performing any work while on a lactation break, including, but not limited to, checking their work e-mail or engaging in work phone or video calls on a mobile device.

Notwithstanding any of the foregoing, exempt employees will be paid for all lactation break time during their workday in accordance with applicable law.

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Employees must provide reasonable, advance written notice to the Company that they intend to take breaks for expressing milk upon returning to work following the birth of the child. Employees should work with their supervisor regarding scheduling of lactation breaks. Nursing parents should specifically provide an estimate of how many lactation breaks will be needed, and if possible, how long the breaks may be and when those breaks may be needed. Where additional lactation breaks are required, or the break schedule needs to be modified from time to time, employees should work with their supervisor regarding scheduling.

Employees have the right to request a lactation room that meets applicable federal, state, and local law requirements for purposes of expressing breast milk to Human Resources (which may be contacted at hr@devocion.com) with any follow-up inquiries. To request use of a lactation room, employees should submit a request to their manager or Human Resources. Devocion will respond to the employee's request within a reasonable amount of time and no later than within five (5) business days. Employees should contact their manager or Human Resources any follow-up inquiries.

A room identified for use as a lactation room may also be used for other purposes. However, during times when an employee is using the room as a lactation room, that will be its sole function. When two or more employees need to use the room for lactation purposes or in connection with other accommodations, they should work with their manager to schedule room usage cooperatively and in a way that accommodates all affected employees. Employees who have questions or concerns related to lactation room scheduling conflicts can also contact their manager.

If providing the requested lactation room will place an undue hardship on Devocion's operations, Devocion will engage in good faith in an interactive process and cooperative dialogue with the employee concerning the employee's accommodation needs.

Devocion will not demote, terminate or otherwise take adverse action against an employee who requests or makes use of the accommodations and break time described in this policy.

Attached to this Handbook is a "Policy on the Rights of Employees to Express Breast Milk in the Workplace" containing additional information concerning your rights as a lactating employee.

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ACCOMMODATION FOR VICTIMS OF DOMESTIC VIOLENCE, SEX OFFENSES OR STALKING

Devoción will provide reasonable accommodations to employees working in New York City who are victims of domestic violence, sex offenses or stalking, unless providing the accommodation would cause an undue hardship on the Company's business.

Devoción may request that an employee provide proof that they are a victim of domestic violence, sex offenses or stalking, such as documentation from a victim's services agency, lawyer, clergy, medical provider, court or the police.

Employees who wish to request an accommodation under this policy should contact their manager or Human Resources (which may be contacted at hr@devocion.com). The Company will communicate with the employee and engage in good faith in a cooperative dialogue (written and/or oral) concerning the employee's accommodation needs. At the conclusion of this dialogue, the Company will provide an employee who requested an accommodation and participated in the dialogue with a final written determination identifying any accommodation granted or denied.

The Company will not refuse to hire, terminate or discriminate against any employee because the employee is, or is perceived to be, a victim of domestic violence, sex offenses or stalking and will not retaliate against any employee who requests an accommodation in accordance with this policy.

COOPERATIVE DIALOGUE ABOUT ACCOMMODATION NEEDS

Devoción will make reasonable accommodations for employees who seek them for reasons related to pregnancy, religion, disability or status as a victim of domestic violence, sex offenses or stalking—when those accommodations are possible and in accordance with applicable law and Company policy. The Company's Disability Accommodation, Religious Accommodation, Pregnancy Accommodation, Lactation Accommodation and Accommodation for Victims of Domestic Violence policies can be found throughout this handbook.

As is set forth more fully in those policies, the Company will engage in good faith in a dialogue (written or oral) concerning an employee's accommodation needs and potential accommodations for those needs. The Company will engage in this cooperative dialogue within a reasonable time after an employee requests an accommodation or the Company becomes aware of the possible need for an accommodation. At the conclusion of the dialogue, the Company will provide the participating employee with a written final determination identifying any accommodation granted or denied. The Company will engage (or attempt to engage) in this

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cooperative dialogue before ever reaching the conclusion that a reasonable accommodation cannot be found. The Company will not retaliate against or tolerate retaliation against employees who request accommodations in accordance with Company policy.

Employees who wish to request an accommodation should contact their manager or Human Resources (which may be contacted at hr@devocion.com).

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EMPLOYEE CONDUCT

ATTENDANCE AND PUNCTUALITY

As an employee you are expected to be regular in attendance and to be punctual. Any tardiness or absence causes problems for your fellow employees, your manager and Devoción. When you are absent, your workload may need to be performed by others, just as you may need to assume the work load of others who are absent. In order to limit problems caused by absence or tardiness of employees, we have adopted the following policy that applies to absences not previously approved by Devoción (and which are not otherwise covered by Devoción's other time off policies).

Employees are expected to report to work as scheduled, be on time and be prepared to start work. Employees are also expected to remain at work for their entire work schedule, except for meal or break periods, or when required to leave on authorized Devoción business or other authorized reason. Unapproved late arrivals, early departures or other absences from scheduled hours are disrupted and should be avoided to the extent possible.

If you will be late or are unable to work on any particular day, you must call your Store Leader, Senior Store Leader or manager, as applicable, as soon as possible before the time you are scheduled to begin working for that day or as soon as practical thereafter. If you cannot reach your Store Leader, Senior Store Leader or manager, you should contact Devoción's Regional Manager or Director of Operations. Absent extenuating circumstances, you must call in on any day you are scheduled to work and will be late or will not be reporting to work.

Absenteeism, tardiness or failure to timely call-in when you will be late or are unable to report to work may result in disciplinary action up to and including termination of employment, unless the absence or tardiness is excused or approved. The following are examples of types of time off that will not be considered grounds for disciplinary action under this policy:

- Time off that was previously approved, including vacation;
- Paid sick and safe time provided under the New York City Paid Safe and Sick Leave Law;
- Approved federal, state, and local leaves of absences, including but not limited to jury duty leave, military leave, leave protected under the Family and Medical Leave Act or similar state laws, and time off or leave specifically approved by the

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Company as an accommodation under the Americans with Disabilities Act or similar state laws; and/or

- Time off due to a work-related injury that is covered by workers' compensation insurance.

If you believe that an absence, tardiness, or early departure is (or should be) excused pursuant to applicable law, please notify your manager as soon as possible. Each situation of absenteeism or tardiness will be evaluated on a case-by-case basis. *Even one unexcused absence or tardiness may be considered excessive, depending upon the circumstances.* Devoción may require supporting documentation be furnished in connection with an absence.

If you fail to report for work without any notification to your manager and your absence continues for a period of two (2) consecutive scheduled work days, we will consider that you have abandoned your job and voluntarily terminated your employment.

Notwithstanding the above, employees will not be disciplined for the lawful use of leave protected by federal, state, or local law, such as jury duty leave, military leave, leave protected under the Family and Medical Leave Act or New York Paid Family Leave, sick leave provided in accordance with the New York City Earned Safe and Sick Time Act and/or the New York State Sick Leave Law, prenatal personal leave time provided in accordance with the New York State Sick Leave Law, and time off or leave specifically approved by the Company as an accommodation under the Americans with Disabilities Act or similar state and local laws.

STANDARDS OF CONDUCT

In order to assure orderly operations and provide the best possible work environment, we expect employees to follow rules of conduct that will protect the interests and safety of personnel. It is not possible to list all the forms of behavior that are considered unacceptable in the workplace, but the following are examples of infractions of rules of conduct that may result in disciplinary action, including suspension, demotion, or termination of employment:

- Violation of the Devoción Code of Ethics.
- Falsification of employment records, employment information, or other records.
- Recording the work time of another employee, allowing any other employee to record your work time, or allowing falsification of any time sheet, whether your own or another employee's.

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- Theft or the deliberate or careless damage of any Devoción property or the property of any employee or client.
- Unauthorized use of Devoción equipment, time, materials, or facilities.
- Possessing, distributing, selling, transferring, or using - or being under the influence of - alcohol or illegal drugs in the workplace.
- Provoking a fight or fighting during working hours or on premises owned or occupied by Devoción.
- Carrying firearms, weapons or dangerous substances at any time, on premises owned or occupied by the Company.
- Insubordination, including but not limited to failure or refusal to obey the orders or instructions of any member of management.
- Using abusive or threatening language at any time during working hours or while on premises owned or occupied by Devoción.
- Unreported absence of two consecutive scheduled workdays.
- Failing to obtain permission to leave work for any reason during your normal working hours.
- Failing to observe working schedules, including meal breaks.
- Working overtime without authorization or refusing to work assigned overtime.
- Violating any safety, health, or security policy, rule, or procedure of Devoción.
- Committing a fraudulent act or a breach of trust in any circumstances.

Although employment may be terminated at will by either the employee or Devoción at any time, without following any formal system of discipline or warning, we may exercise discretion to utilize forms of discipline that are less severe than termination. Examples of less severe forms of discipline include verbal warnings, written warnings, demotions and suspensions. While one or more of these forms of discipline may be taken, no formal order or procedures are necessary.

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This statement of prohibited conduct does not alter or limit the policy of at-will employment. Either you or Devoción may terminate the employment relationship at any time for any reasons, with or without cause, and with or without notice. Only the CEO has the authority to enter into any employment agreement with you that alters the fact that the employment relationship is at will, and any such agreement must be in writing and signed by the CEO.

PERSONAL APPEARANCE AND DRESS

Our employees represent Devoción. Therefore, it is important that employees project a positive, well-groomed and professional image. Although Devoción does not require that employees wear a uniform, employees must wear proper attire that is clean, neat, and in good condition. Employees who are not dressed properly and who do not appear presentable may be asked to return home to change.

Employees must wear appropriate footwear, and are prohibited from wearing sandals, flip-flops or other open-toe shoes (all employees must wear closed-toe shoes, but these shoes may be of the employees' own choosing and from their ordinary wardrobe).

All employees that work in the kitchen or the bar must also wear a hat or headwear of the employees' own choosing and from their ordinary wardrobe, or may request a hat from Devoción, free of charge, but is under no obligation to do so. Employees who do not work in the kitchen or the bar may choose to wear a hat or headwear of the employee's choosing and from their ordinary wardrobe (e.g., caps, bandanas, or headscarves). All hats or headwear must be a solid color and must be free of any visible logos, slogans, graphics, or other images, unless it is of Devocion's logo or merchandise (employees are not required to wear clothing with Devocion's logo or Devocion merchandise) or unless the logo is otherwise sufficiently small (no larger than 1 inch by 1.5 inches).

Any shirts and blouses worn by employees must be solid colors or patterns. Shirts or blouses must have sleeves (no sleeveless t-shirts or tank tops) and must cover the employee's midriff (no exposed belly). Shirts or blouses must be free of any visible logos, slogans, graphics, or other images, unless it is of Devocion's logo or merchandise (employees are not required to wear clothing with Devocion's logo or Devocion merchandise) or unless the logo is otherwise sufficiently small (no larger than 1 inch by 1.5 inches).

Shorts, skirts, leggings, and pants are permitted to be work and such clothing worn by employees must be solid colors or patterns. Leggings and pants should be tastefully worn and should not be excessively form fitting. Shorts and skirts must extend to full arm's length when the arm is held straight down at the side of the body. Shorts, skirts, leggings, and pants must be free

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of any visible logos, slogans, graphics, or other images, unless it is of Devocion's logo or merchandise or unless the logo is otherwise sufficiently small (no larger than 1 inch by 1.5 inches). (employees are not required to wear clothing with Devocion's logo or Devocion merchandise).

. Devoción generally does not seek to take a stance on religion, public politics, world affairs, etc. Further, employees should not use the Devoción's logo, trademark or proprietary graphics in a way that suggests they are representing the Company or while engaging in conduct that violates Devoción policies.

The Company will grant exceptions to this policy as a reasonable accommodation to an employee's sincerely held religious beliefs, observances, and practices, or a medical condition, provided it does not impose an undue hardship on the Company. Additionally, nothing in this policy is intended to prevent you from wearing a hair or facial hair style that is consistent with your cultural, ethnic, or racial heritage or identity. We encourage employees to seek the advice of their manager if they have questions regarding appropriate dress or appearance at work.

This policy in no way prohibits employee affiliations or activities that are protected under applicable state and federal laws, including but not limited to any activity that is protected under Section 7 of the National Labor Relations Act.

DRUG AND ALCOHOL USE

Devoción is committed to providing a safe working environment to protect our employees and others; to provide the highest level of service; and to minimize the risk of accidents and injuries. For these reasons, we have adopted a policy that all employees must report to work and remain completely free of illegal drugs, alcohol, and cannabis (including all of its' derivatives). We reserve the right to perform illegal drug and alcohol testing in accordance with applicable law.

All employees are prohibited from manufacturing, cultivating, distributing, dispensing, possessing or using illegal drugs, alcohol and/or cannabis at all times while at work or on duty. Included within this prohibition are lawful controlled substances that have been illegally or improperly obtained. This policy does not prohibit the possession and proper use of lawfully prescribed drugs taken in accordance with the prescription.

All employees are prohibited from distributing, dispensing, possessing or using any beverage or medicine containing alcohol while at work or on duty and from coming onto Devoción premises, reporting to work, or working with alcohol in their systems.

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Lawful off-duty alcohol and cannabis use, while generally not prohibited by this policy, must not interfere with an employee's job performance or interfere with Devoción's obligation to provide a self and health workplace as required by applicable law.

CONFIDENTIAL INFORMATION

Devoción's trade secrets and confidential and proprietary information are vital to its current operations and future success. All employees shall use all reasonable care to protect or otherwise prevent the unauthorized disclosure of such information. In no event shall such information be disclosed or revealed within or outside Devoción without proper authorization or purpose.

By way of example, trade secrets and confidential or proprietary information will include information regarding Devoción's business methods, business plans, databases, systems, technology, intellectual property, know-how, business development, operations, products, recipes, food and/or coffee preparation methods, services, research, development, inventions, financial statements, financial projections, financing methods, pricing strategies, costs, customer sources, system designs, vendor or client arrangements or agreements, customer lists, methods of competing, and other proprietary information. If an employee is uncertain whether certain information should be treated as confidential, the employee should seek guidance from Devoción's Human Resources (which may be contacted at hr@devocion.com).

Confidential information does not include information lawfully acquired by non-management employees about wages, hours or other terms and conditions of employment, if used by them for purposes protected by § 7 of the National Labor Relations Act such as joining or forming a union, engaging in collective bargaining, or engaging in other concerted activity for mutual aid or protection.

Nothing in this Employee Handbook prohibits an employee from reporting concerns, making lawful disclosures, or communicating with any governmental authority about conduct the employee believes violates any applicable law.

Further, employees are hereby notified that under the 2016 Defend Trade Secrets Act (DTSA): (1) no individual will be held criminally or civilly liable under Federal or State trade secret law for the disclosure of a trade secret (as defined in the Economic Espionage Act) that: (A) is made **in confidence to** a Federal, State, or local government official, either directly or indirectly, or to an attorney; and made **solely for the purpose of** reporting or investigating a suspected violation of law; or, (B) is made in a complaint or other document filed in a lawsuit or other proceeding, **if such filing is made under seal** so that it is not made public; and (2) an individual

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who pursues a lawsuit for retaliation by an employer for reporting a suspected violation of the law may disclose the trade secret to the attorney of the individual and use the trade secret information in the court or arbitration proceeding, if the individual files any document containing the trade secret under seal, and does not disclose the trade secret, except as permitted by order in that proceeding.

SOCIAL MEDIA POLICY

Devoción recognizes that many employees have personal blogs or participate in other online conversations and social media sites (*e.g.*, Instagram, Facebook, LinkedIn, YouTube, Twitter, Snapchat, Tumblr, Pinterest, etc.). This Social Media Policy applies to all Devoción employees and is intended to provide guidance on appropriate conduct when engaging in social media activity that identifies the employee's affiliation with Devoción (other than as an incidental mention of place of employment in personal social media activity unrelated to Devoción) or relates in any way to Devoción's business, employees, customers, vendors, or competitors.

"Social media activity," for purposes of this policy, includes all types of postings on the Internet, including but not limited to, postings on social networking sites, blogs and other on-line journals and diaries; bulletin boards and chat rooms; microblogging, such as X or BlueSky; and postings of video or audio on media-sharing sites, such as YouTube. "Social media activity" also includes permitting, or failing to remove, posts by others where the employee can control the content of postings, such as on a personal page or blog.

Devoción respects the legal rights of its employees and understands that employees' time outside of work is their own. Devoción understands that employees may use social media while off duty. Employees should be mindful that their social media activity, even if done off premises and while off duty, could affect Devoción's legitimate business interests. For example, the information posted could constitute Devoción's trade secrets. In addition, some readers may mistakenly view you as a spokesperson for Devoción. Consequently, social media activity is a legitimate and proper focus of Devoción policy. Moreover, for these reasons, Devoción relies on employees' common sense and good judgment to ensure that social media activity is undertaken responsibly.

Unless an employee has received prior authorization from Devoción's CEO, they should not represent in any social media content that they are authorized to speak on the Company's behalf, or that the Company has reviewed or approved their content. Devoción generally does not seek to take a stance on religion, public politics, world affairs, etc. If that will not be obvious from the content or context of their post, the employee should put in their post "#notanofficialspokesperson" or state in their account profile or post, "*The views expressed in this*

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post are my own. They have not been reviewed or approved by Devoción.*"* Employees should not use the Devoción's logo, trademark or proprietary graphics in a way that suggests they are representing the Company or while engaging in conduct that violates Devoción policies. For example, employees should not create a social media page with Devoción' logo placed in a way that might suggest to readers that Devoción is sponsoring the page.

Devoción may, in its discretion, review social media activity to the fullest extent permitted by applicable law. If an employee engages in social media activity anonymously or using a pseudonym, Devoción may, in appropriate circumstances, take steps to determine the employee's identity. Employees' social media activity is subject to all applicable Devoción policies, including, but not limited to, Devoción's policies regarding Equal Employment Opportunity, Harassment and Standards of Conduct. Employees will be held accountable for engaging in social media activity that violates such policies. Employees should not post content about, or any image of, Devoción, management, co-workers, customers, or vendors that is vulgar, obscene, threatening, knowingly or recklessly false, hateful, or a violation of Devoción's policies against discrimination, harassment, or hostility on account of age, race, religion, sex, sexual orientation, ethnicity, nationality, disability, or other protected class, status, or characteristic. Employees should not disparage Devoción's products or services, or the products or services of its vendors or competitors.

Failure to comply with this policy whether during or after employment, may result in disciplinary action up to and including, termination of employment, legal action, or criminal prosecution. Devoción reserves the right to report suspected unlawful conduct to appropriate law enforcement authorities. Devoción will not construe or apply this policy in a manner that interferes with employees' legally protected social media discussions regarding wages, hours, or working conditions.

This policy does not and cannot cover every possible issue related to social media activity. In the event an area is not covered specifically by this policy, Devoción relies on the professionalism and judgment of its employees to ensure that social media activity is undertaken responsibly.

Keep in mind that you are more likely to resolve concerns about work by speaking directly with your co-workers, manager or other management-level personnel than by posting your concerns through social media activity. You should consider using available internal resources, rather than social media activity, to resolve these types of complaints. Nevertheless, if you decide to post concerning work related issues, please follow the guidelines set forth in this policy.

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RELATIONSHIPS AT WORK

In an effort to prevent favoritism, morale problems, disputes or misunderstandings, and claims of harassment, Devoción employees are not permitted to date or engage in romantic or sexual relationships with one another. Violation of this policy may result in discipline, up to and including termination. In addition, a familial or other intimate relationship among employees, particularly those in a supervisory relationship, can create an actual or at least potential or perceived conflict of interest. Therefore, if such relationships arise, Devoción will consider them carefully, and appropriate action may be taken. For example, we may refuse to hire or place a relative in a position where the potential for a conflict exists. In cases where a conflict or the potential for conflict arises, even if there is no supervisory relationship involved, the parties may be separated by reassignment or terminated from employment, at the discretion of Devoción. Employees who have a managerial or supervisory position over someone with whom they have a romantic, familial or other intimate relationship are required to report the relationship to Devoción's Human Resources (which may be contacted at hr@devocion.com). For the purposes of this policy, individuals will be considered to be in a familial relationship if they are related by blood or marriage or if their relationship with each other is similar to that of persons who are related by blood or marriage.

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EMPLOYMENT PRACTICES AND PROCEDURES

PERFORMANCE REVIEW

Devoción believes that regular and timely communication regarding an employee's performance is important to an employee's success with Devoción. As such, Devoción monitors and reviews employee performance on an ongoing basis. Managers and employees are strongly encouraged to discuss job performance and goals on an informal, regular basis. A positive performance review or reviews, whether formal or informal, does not guarantee a salary increase or a promotion. Rather, wages may be reviewed periodically and adjustments, if any, may be based on a number of factors, including, but not limited to, change in employee's responsibilities, employee's performance, Devoción's performance, the general economic environment and other business-related factors.

OUTSIDE EMPLOYMENT

Devoción will not take adverse employment action against any employee for engaging in lawful conduct occurring during nonworking hours away from Devoción. Under certain circumstances, however, if an employee's personal conduct begins to adversely affect their performance on the job, or begins to make it impossible for their to carry out any one or all of their job duties while at work, Devoción may take appropriate disciplinary action up to and including termination of employment. Therefore, the following types of outside employment are prohibited:

- Employment that conflicts with your work schedule, duties and responsibilities or creates an actual conflict of interest.
- Employment that impairs or has a detrimental effect on your work performance with Devoción.
- Employment that requires you to conduct work or related activities on Devoción property, during working hours or using Devoción facilities and/or equipment.

For the purposes of this policy, self-employment is considered outside employment. Devoción will not assume any responsibility for outside employment. Specifically, Devoción will not provide workers' compensation coverage or any other benefit for injuries occurring from, or arising out of, such outside employment.

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If you wish to engage in outside employment which may create a conflict of interest, please submit a written request to Human Resources (which may be contacted at hr@devocion.com), explaining the details of the outside employment.

OPEN DOOR POLICY

We recognize that employees will have suggestions for improving the workplace, as well as complaints about the workplace. The most satisfactory solution to a job-related problem or concern is usually reached through a prompt discussion with your manager. Please feel free to contact your manager with any suggestions and/or complaints. If you do not feel comfortable contacting your manager, please contact Human Resources (or, if you believe Human Resources may not be appropriate, the CEO) to discuss your suggestions and/or complaints.

While we provide you with this opportunity to communicate your views, please understand that not every complaint can be resolved to your satisfaction. Even so, we believe that open communication is essential to a successful work environment and all employees should feel free to raise issues of concern without fear of reprisal.

Devoción also provides for arbitration of certain legal disputes, and the agreement to arbitrate those disputes is contained in a legal document separate and apart from this Employee Handbook. A copy of Devoción's current arbitration agreement is available from Human Resources (which may be contacted at hr@devocion.com). The arbitration agreement is a legal contract between you and Devoción and you should review it carefully.

REFERENCES

To ensure consistency, fairness, and lawfulness, all requests for references must be directed to Human Resources (which may be contacted at hr@devocion.com). No other manager or employee is authorized to release references for current or former employees. Our policy as to references for former employees is to disclose only the dates of employment and the title of the last position held.

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FACILITIES

SOLICITATION AND DISTRIBUTION OF LITERATURE

We have established rules applicable to all employees and non-employees that govern solicitation, distribution of written material, political advocacy and access to Devoción property. Strict compliance with these rules is required.

- No employee shall engage in solicitation during their working time or during the working time of the employee or employees at whom such activity is directed.
- No employee shall distribute or circulate any written or printed material in work areas at any time, or during their working time or during the working time of the employee or employees at whom such activity is directed.
- No employee shall engage in political advocacy on a subject over which Devoción has no control in a manner that is disruptive to Devoción operations.
- Under no circumstances will non-employees be permitted to solicit or to distribute written material for any purpose on Devoción property.
- Off-Duty employees are not permitted behind the bar, in the kitchen, or in the production areas.

As used in this policy, "working time" includes all time for which an employee is paid and/or is scheduled to be performing services for Devoción; it does not include meal breaks, or periods in which an employee is not performing and is not scheduled to be performing services or work for Devoción.

BULLETIN BOARDS

Bulletin boards are reserved for the exclusive use of Devoción for posting work-related notices or notices that must be posted pursuant to law. From time to time, special notices and information for employees will be posted by Devoción on the bulletin boards. Please check the boards regularly for these notices. Employee postings are not permitted.

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USE OF EQUIPMENT

Equipment essential in accomplishing your job duties may be expensive and difficult to replace. When using Devoción property, employees are expected to exercise care, perform required maintenance, and follow all operating instructions, safety standards, and guidelines.

Please notify your manager or Human Resources (which may be contacted at hr@devocion.com) if any equipment appears to be damaged, defective, or in need of repair. Prompt reporting of damages, defects, and the need for repairs could prevent deterioration of equipment and possible injury to employees or others.

The improper, careless, negligent, destructive, or unsafe use of equipment can result in disciplinary action, which may include immediate termination of employment.

USE OF ELECTRONIC RESOURCES

Employees should use Devoción's electronic resources with the understanding that these resources are provided for the benefit of Devoción's business. Accordingly, employees should use these resources to further Devoción's ability to conduct its business and in a manner that is consistent with performance of their duties and responsibilities. Employees should never use Devoción's electronic resources for personal use in a manner that interferes with work or any responsibilities to customers. Additionally, all employees are responsible for ensuring that they use Devoción's electronic resources in an effective, ethical and lawful manner.

COMPUTER AND SYSTEMS SECURITY

All computers and the data stored on them are and remain at all times the property of Devoción. As such, all documents and messages created, sent or retrieved over the Internet or Devoción's electronic mail systems are the property of Devoción, and should be considered Devoción information. Devoción reserves the right to monitor, retrieve and read any document or message composed, sent or received using its electronic resources, including all computer equipment and the electronic mail system.

If you want to send a confidential piece of communication that you do not want Devoción to be able to monitor, you should use your personal e-mail address and your personal network and computer equipment. If you do use Devoción's e-mail or equipment, you consent to any monitoring by Devoción and you understand that you do not have the right to privacy with respect to such communications.

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USE OF TELEPHONES

While you are at work, you are expected to perform your job duties and responsibilities. The use of personal cell phones and other hand-held devices during working hours is a distraction to the user, co-employees and customers. Thus, any personal calls should be infrequent and of short duration. Unless authorized by your manager, and for Devoción-business purposes, cell phone cameras (or other cameras) may not be used to photograph confidential documents, confidential plans, or other confidential information belonging to Devoción. Cameras should not be used to take pictures of fellow employees or other persons, including customers, without their permission.

Devoción's telephones are for business use only. Devoción monitors all usage of its telephones.

Any violation of this policy will result in disciplinary action, which may include immediate termination of employment.

WORKPLACE RECORDING

Employees are not prohibited from photographing, taping or recording, or attempting to record any person, document, conversation, communication, or activity that occurs at, or is related to the business activities of Devoción. However, the following are examples of restrictions that do apply:

1. Working time is for work. Unless photographing, taping or recording is required as part of a job function you are performing, it should not be done during your working time. Photographing, taping or recording during non-working time is permitted, subject to the other qualifications below.

2. If photographing, taping or recording would violate other Devoción policies, such as Devoción's policy prohibiting discrimination based on any protected characteristics, it is not permitted at any time.

3. Photographing, taping or recording Devoción's trade secrets or other confidential information, such as customer lists, internal financial information and account numbers, proprietary technical formulas and processes, and protected medical records, is not allowed at any time.

4. Photographing, taping or recording that infringes on reasonable expectations of privacy, such as the privacy of co-workers using restrooms

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and locker rooms, is not permitted.

5. Recording coworkers without their knowledge or consent may infringe on their privacy rights. Nonconsensual recordings may be viewed as particularly intrusive and unreasonable, and result in claims of illicit harassment; be aware that some religions may prohibit the taking of photographs or videos of members of that religion.

6. Some jurisdictions have laws that prohibit recordings of any person without their knowledge or consent. Recording in any manner that violates state or federal law is prohibited.

Photographing and videotaping is not restricted when employees are acting in concert for their mutual aid and protection and no overriding contrary interest is present. Consistent with the foregoing, recordings may include employees documenting workplace conditions, or other terms or conditions of employment.

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TIME OFF AND OTHER BENEFITS

Devoción offers a variety of time off and other benefits to eligible employees. Devoción reserves the right to amend, suspend, modify, terminate or add to any or all benefits provided hereunder, in whole or in part, at any time in its sole discretion, in accordance with applicable law.

MEAL PERIODS & BREAKS

Employees who work a shift of more than six (6) hours are entitled to meal periods as follows:

- If your shift extends over the period from 11:00 a.m. to 2 p.m., you are entitled to a thirty (30) minute meal period, to be taken within that period.
- If your shift starts before 11:00 a.m. and continues after 7 p.m., you are entitled to a thirty (30) minute meal period (to be taken between 11:00 a.m. and 2 p.m.), plus an additional thirty (30) minute meal period in the evening (to be taken between 5 p.m. and 7 p.m.).
- If your shift starts between 1 p.m. and 6 a.m., you are entitled to a thirty (30) minute meal period (in the middle of your shift).

Employees who work a shift that is six (6) hours or less are not entitled to a meal period.

Meal periods may not be taken at the beginning or end of shifts (e.g., in order to arrive to work late or leave work early). Employees will be relieved of all of their duties during meal periods and are allowed to leave the premises. All employees must clock-out at the beginning of the meal break and clock-in at its conclusion.

Any employee not receiving their meal periods should immediately notify their manager or Human Resources (which may be contacted at hr@devocion.com).

Employees may be granted additional non-meal period breaks (i.e., rest breaks), at the discretion of their manager. These rest breaks should be of limited duration (e.g., 5 minutes to use the restroom or as otherwise approved by your manager). Non-exempt employees may not use rest breaks as a basis for starting work late, leaving work early, or extending a meal period. Non-exempt employees may not leave Devoción during a rest break, unless approved by their manager. Devoción pays non-exempt employees for such rest breaks, and, consequently, non-

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exempt employees do not need to record the start and stop times of their rest breaks.

PAID AND UNPAID SAFE AND SICK TIME

Devoción provides eligible employees with paid safe and sick time in accordance with the requirements of the New York City Earned Safe and Sick Time Act ("ESSTA") and the New York State Sick Leave Law ("NYSSLL") and unpaid safe and sick time in accordance with ESSTA.

The guidelines set forth in this policy do not supersede applicable federal, state or local law regarding leaves of absence, including leave taken under the Family and Medical Leave Act (FMLA), and/or as a reasonable accommodation under the Americans with Disabilities Act or Americans with Disabilities Act Amendments Act of 2008 or any other applicable federal, state or local law, including those prohibiting discrimination and harassment.

Eligibility

All employees (whether full-time, part-time, or temporary) are eligible to accrue paid safe and sick time.

All employees (whether full-time, part-time, or temporary) are eligible to be granted unpaid safe and sick time.

Accrual of Paid Safe and Sick Time

Eligible employees will begin to accrue paid safe and sick time on the employee's date of hire. Safe and sick time is accrued at a rate of one hour for every 30 hours worked, up to a maximum accrual of 40 hours in a single calendar year. For the purposes of this policy, Devoción's calendar year starts on January 1 and ends on December 31 of each year. Salaried exempt employees will be assumed to work 40 hours in a week unless the employee's regular work week is less than forty 40 hours, in which case safe and sick time accrues based upon that regular workweek, unless otherwise required by applicable law. Eligible employees may use accrued paid safe and sick time as it is accrued, subject to the terms and conditions of this policy. Safe and Sick Time will not accrue when the employee uses available paid or unpaid safe and sick time, vacation or other paid or unpaid time off.

Annual Grant of Unpaid Safe and Sick Time

Eligible employees will receive an annual grant of 32 hours of unpaid safe and sick time to employees on their first day of employment with the Company or on their date of eligibility under the ESSTA, whichever is later, and at the beginning of each calendar year thereafter. *All current

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employees as of February 22, 2026 will be granted 32 hours of unpaid safe and sick time on that date, for use during the remainder of the calendar year. Eligible employees may use granted unpaid safe and sick time as it is received, subject to the terms and conditions of this policy.

Reasons Safe and Sick Time May Be Used

Paid and unpaid safe and sick time may be used in thirty (30) minute increments.

Eligible employees may use up to 40 hours of paid safe and sick time, and 32 hours of unpaid safe and sick time, in any calendar year.

Paid and unpaid safe and sick time may be used only for the following reasons when an employee cannot work:

- For an eligible employee's mental or physical illness, injury or health condition or need for medical diagnosis, care or treatment of a mental or physical illness injury or health condition or need for preventive medical care (e.g., screenings, checkups, patient counseling to prevent health problems);
- To care for an eligible family member who needs medical diagnosis, care or treatment of a mental or physical illness, injury or health condition or who needs preventive medical care; or
- To care for a child whose school or childcare provider has been closed by order of a public official due to a public health emergency (or, effective February 22, 2026, care for a child whose school or childcare provider has been closed or restricted in-person operations by order of a public official due to a public health emergency or a public disaster).
- Effective February 22, 2026: When the employee is a caregiver for a minor child or care recipient, to provide care to the minor child or care recipient.
- Effective February 22, 2026: When directed by a public official to remain indoors or avoid travel during a public disaster which prevents such employee from reporting to their work location.
- Effective February 22, 2026: To initiate, attend or prepare for a legal proceeding or hearing related to subsistence benefits or housing to which the employee, the employee's family member, or the employee's care recipient is a party, or to take actions necessary to apply for, maintain, or restore subsistence benefits or shelter for the employee or their family member or care recipient.

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- If the employee or an eligible family member is the victim of a family offense matter, sexual offense, stalking, workplace violence (effective February 22, 2026) or human trafficking and time off is needed to:
    - Obtain services from a domestic violence shelter, rape crisis center or other shelter or services program;
    - Participate in safety planning, temporarily or permanently relocate, or take other actions to increase the safety of the employee or family member;
    - Meet with a legal or other social service provider to obtain information and advice on, and prepare for or participate in, any criminal or civil proceeding, including but not limited to matters related to a family offense matter, sexual offense, stalking, human trafficking, custody, visitation, matrimonial issues, orders of protection, immigration, housing, discrimination in employment, housing or consumer credit;
    - File a complaint or domestic incident report with law enforcement;
    - Meet with a district attorney's office;
    - Enroll children in a new school; or
    - Take other actions necessary to maintain, improve, or restore the physical, psychological, or economic health or safety of the employee or family member or to protect those who associate or work with the employee.
- For any other reason allowed under applicable law.

A "family offense matter" is actual or threatened disorderly conduct, harassment, aggravated harassment, sexual misconduct, forcible touching, sexual abuse, stalking, criminal mischief, menacing, reckless endangerment, strangulation, criminal obstruction of breathing or blood circulation, assault, identity theft, coercion or grand larceny, between spouses, former spouses, a parent and child or between members of the same family or household.

Eligible family members include an employee's spouse or registered domestic partner; parent, parent-in-law or parent of a domestic partner; child or child of a domestic partner, including a biological, adopted or foster child, a stepchild, a legal ward, or a child of an employee standing *in loco parentis*; sibling, including a half-sibling, step-sibling and sibling related through adoption; grandchild; grandparent; an individual related to the employee by blood; and an individual whose close association with the employee is the equivalent of a family relationship.

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For purposes of this policy, a "care recipient" means a person with a disability, including a temporary disability, who is a family member or resides in the employee's household and relies on the employee for medical care or to meet the needs of daily living.

Paid and unpaid safe and sick time may not be used as additional vacations days. Additionally, paid and unpaid safe and sick time may not to be used to extend employment or to delay a termination date. An employee who uses safe and sick time for purposes other than those permitted by this policy will be subject to disciplinary action, up to and including termination from employment.

Requesting Safe and Sick Time/Documentation

Employees should provide seven days' advance notice if the need for paid or unpaid safe and sick time is foreseeable (*i.e.*, expected or planned leave known at least seven days in advance). When that is not possible or the need for paid or unpaid safe and sick time is unforeseeable, employees must provide notice as soon as practicable and may be required to document their request for safe and sick time. To provide notice of the need to use paid or unpaid safe and sick time, employees should contact their manager. Employees should make a reasonable effort to speak to and notify their manager directly. If you cannot reach your manager, you should contact any member of the upper management team in your Department (e.g., Director or Regional Manager). Voicemail, email or other forms of communication should be used only if an employee is unable to speak to their manager, the CEO, or the Vice President of Operations directly. Notice should be provided for each day sick time is used.

If an employee has both paid safe and sick time and unpaid safe and sick time available for use, the Company will first apply any available paid safe and sick time hours to the absence, unless the employee specifically requests to use unpaid safe and sick time or other available leave.

Employees are not required to search for or find a replacement worker to cover the hours during which such employee is utilizing safe and sick leave.

If an employee uses paid or unpaid safe and sick time for more than three consecutive, scheduled workdays, the Company may require (for the employee's own or family member's health condition) a note or other supporting documentation from a licensed clinical social worker, licensed mental health counselor, or other licensed health care provider confirming the employee's need for the absence and the amount of leave needed. Depending on the circumstances, verification may include a doctor's note (for the employee's own or family member's health condition); documentation from a school or care provider; police report, court document, or court order of protection (indicating domestic violence, a family offense matter,

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sexual offense, stalking, workplace violence, or human trafficking); documentation from a legal or social services provider, court, or government agency for a legal proceeding or hearing related to subsistence benefits or housing; attestation from the employee; and/or other verification as permitted by applicable law. Any written confirmation of usage requested by the Company should be submitted Human Resources (which may be contacted at hr@devocion.com).

Payment for use of paid safe and sick time may be withheld until the employee has submitted this written confirmation of usage, except when the supporting documentation is unobtainable due to associated costs. The Company will reimburse the employee for any fees associated with obtaining supporting documentation from a licensed clinical social worker, licensed mental health counselor, or other licensed health care provider concerning the eligibility of the employee for use of paid or unpaid safe and sick time. Any requests for reimbursement and proof of fees or costs should be submitted to Human Resources (which may be contacted at hr@devocion.com).

The Company will not ask the employee to provide details about the medical condition that led the employee to use paid or unpaid sick leave for a health-related reason, or the personal situation that led the employee to use paid or unpaid sick and safe time for absences due to domestic violence, a family offense matter, sexual offense, stalking, workplace violence or human trafficking. Any information the Company receives about the employee's use of paid or unpaid sick and safe time will be kept confidential and will not be disclosed to anyone without the employee's permission or as required by law.

Rate of Pay and Overtime

Paid safe and sick time is paid based on the employee's straight time pay rate in effect at the time the safe and sick time is taken (or, for tipped employees, at minimum wage). Safe and sick time is not considered time worked for the purpose of calculating overtime for the week in which the safe and sick time was taken. If employees work more than one job for Devoción or if their pay fluctuates for one job, the rate of pay for safe and sick time will be the rate they would have been paid during the period of leave.

Non-exempt employees will not receive compensation when using unpaid safe and sick time. Devoción may reduce an exempt employee's salary for workweeks in which unpaid safe and sick time is used if permitted by applicable law.

Safe and Sick Time Carryover

Employees who have accrued paid safe and sick time remaining at the end of the year may carry over accrued and unused paid safe and sick time to the next calendar year. However,

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irrespective of how many hours have been accrued during the current calendar year or carried over from a prior calendar year, employees may not use more than 40 hours of paid safe and sick time in any calendar year. Devoción does not offer pay in lieu of using paid safe and sick time.

Unpaid safe and sick time that remains unused at the end of a calendar year will be forfeited and will not carry over from one calendar year to the next.

Confidentiality

Devoción will not ask the employee to provide details about the medical condition that led the employee to use paid or unpaid safe and sick time for a health-related reason, or the personal situation that led the employee to use paid or unpaid safe and sick time for absences due to domestic violence, a family offense matter, sexual offense, stalking, workplace violence or human trafficking. Any information the Company receives about the employee's use of paid or unpaid safe and sick time will be kept confidential and will not be disclosed to anyone without the employee's permission or as required by law.

Effect on Other Rights and Policies

Devoción may provide other forms of leave for employees to care for medical conditions or issues related to domestic violence, stalking or sex offenses under certain federal, state and municipal laws. In certain situations leave under this policy may run at the same time as leave available under another federal or state law, provided eligibility requirements for that law are met. Devoción is committed to complying with all applicable laws. Employees should contact Devoción's Human Resources (which may be contacted at hr@devocion.com) for information about other federal, state and municipal medical, victim or family leave rights.

Separation from Employment

Compensation for accrued and unused paid or unpaid safe and sick time is not provided upon separation from employment for any reason. If an employee is rehired by Devoción within six months of separation from employment, previously accrued but unused paid safe and sick time will be immediately reinstated.

Retaliation

As long as the use of paid or unpaid sick leave complies with the requirements of this policy and the NYSSLL and the ESSTA, the Company will not count employees' use of paid or unpaid sick leave as an absence or "occurrence" under any Company attendance policy.

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Therefore, any such use of paid or unpaid sick leave will not lead to or result in discipline, demotion, suspension or termination.

The Company will not retaliate or discriminate against any employee for requesting or using paid sick leave for authorized circumstances or for making a complaint or informing a person about a suspected violation of this policy, cooperating or participating in any investigation, administrative hearing or judicial action regarding an alleged violation, opposing any policy or practice prohibited by any sick and safe time or mandatory paid leave law, or informing any person of their potential rights under applicable law.

PAID PRENATAL PERSONAL LEAVE TIME

Devoción provides eligible employees with paid prenatal personal leave time in accordance with the requirements of New York's Sick and Safe Leave Law ("NYSSLL") and the New York City Earned Safe and Sick Time Act ("ESSTA"), as applicable.

Eligibility

All employees working in New York for the Company are eligible to receive paid prenatal personal leave time under this policy, beginning from their first calendar day of employment, if they receive prenatal health care services in connection with their own pregnancy. Spouses, partners, other support persons of individuals receiving prenatal health care services are not eligible for paid prenatal personal leave time.

Amount of Paid Prenatal Personal Leave Time

The Company provides eligible employees up to 20 hours of paid prenatal personal leave time during any 52-week period. The 52-week period will be measured forward from the first time the employee uses paid prenatal personal leave time.

Using Paid Prenatal Personal Leave Time

Paid prenatal personal leave time may be used only during times that an employee cannot work because the employee is receiving health care services during their pregnancy or related to such pregnancy, including physical examinations, medical procedures, monitoring and testing, and discussions with a health care provider related to the pregnancy. This can also include fertility treatment or care appointments, including in vitro fertilization, as well as end-of-pregnancy care appointments. However, employees cannot use paid prenatal personal leave time for post-natal or postpartum appointments.

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Employees must use paid prenatal personal leave time in one (1) hour increments, to cover all or part of a workday.

Notice Required

Employees should provide seven days' advance notice if the need for prenatal personal leave time is foreseeable (*i.e.*, expected or planned leave known at least seven days in advance). When that is not possible or the need for prenatal personal leave time is unforeseeable, employees must provide notice as soon as practicable and may be required to document their request for prenatal personal leave time. To provide notice of the need to use safe and sick time, employees should contact their manager. Employees should make a reasonable effort to speak to and notify their manager directly. If you cannot reach your manager, you should contact any member of the upper management team in your Department (e.g., Director or Regional Manager). Voicemail, email or other forms of communication should be used only if an employee is unable to speak to their manager, the CEO, or the Vice President of Operations directly. Notice should be provided for each day prenatal personal leave time is used.

Verification of Absence

In general, employees will not be required to provide verification of the need for paid prenatal personal time but may be required to provide documentation or certification of the absence under another applicable law like the Family and Medical Leave Act or the Pregnant Workers Fairness Act.

The Company will not ask the employee to provide details about the medical condition that led the employee to use paid prenatal personal leave for a health-related reason. Any information the Company receives about the employee's use of paid prenatal personal leave will be kept confidential and will not be disclosed to anyone without the employee's permission or as required by law.

Discipline for Unprotected Use of Paid Prenatal Personal Leave Time

Discipline – up to and including termination – may be taken against an employee who uses paid prenatal personal leave time for a purpose not covered by, or in a manner not consistent with, the NYSSLL or the ESSTA. In addition, discipline – up to and including termination – may be taken against an employee that violates this policy's requirements concerning requesting, using, recording, verifying, and/or documenting use of paid prenatal personal leave time.

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Rate of Pay

The rate of pay for prenatal personal leave time will be calculated in accordance with applicable law.

Effect on Other Rights and Policies

Paid prenatal personal leave time is a leave bank separate and apart from, and does not affect or limit, any existing paid or unpaid leave benefits provided to employees under other Company policies or applicable law, including but not limited to PTO and paid or unpaid safe and sick time under the NYSSLL or the ESSTA. Employees remain eligible to use any available and applicable paid or unpaid leave benefits. Paid prenatal personal leave time may be used prior to or in lieu of using any other time off.

The Company may provide other forms of leave for employees for their own pregnancy or pregnancy-related conditions under certain federal, state and municipal laws (*e.g.*, the Family and Medical Leave Act). In certain situations, leave under this policy may run at the same time as leave available under another federal, state or municipal law, provided eligibility requirements for that law are met.

Separation from Employment

The Company does not pay employees for unused paid prenatal personal leave time at any time, including upon separation from employment for any reason.

No Discrimination or Retaliation

As long as the use of paid prenatal personal leave time complies with the requirements of this policy and the NYSSLL/ESSTA, the Company will not count employees' use of paid prenatal personal leave time as an absence or "occurrence" under any Company attendance policy. Therefore, any such use of paid prenatal personal leave time will not lead to or result in discipline, demotion, suspension or termination.

The Company will not retaliate or discriminate against any employee for requesting or using paid prenatal personal leave time for authorized circumstances or for making a complaint or informing a person about a suspected violation of this policy, cooperating or participating in any investigation, administrative hearing or judicial action regarding an alleged violation, opposing any policy or practice prohibited by any sick and safe time or mandatory paid leave law, or informing any person of their potential rights under applicable law.

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PAID TIME OFF POLICY

Devoción provides eligible full-time employees with paid time off ("PTO") from work. PTO may be taken for vacation. Part-time employees and temporary employees are not eligible for PTO, except as may be required by applicable law.

Eligibility and Accrual

Employees who are regularly scheduled to work thirty-five (35) or more hours per week are considered full-time employees and are eligible to receive PTO in accordance with the following:

- Managers, Directors, Senior Store Leaders, Service Department and Sales employees:

  Full-time Managers, Directors, Senior Store Leaders, Service Department and Sales employees shall be granted 80 hours (i.e., 10 days) of PTO after ten (10) consecutive months of active employment with Devoción to be used only in the calendar year it was earned with the exception of up to 40 hours of PTO, which may be carried into and used during the first calendar month of the new year (if not used, such carried over PTO will be forfeited without compensation on January 31st).

  - Following the first ten (10) consecutive months of active employment, full-time Managers, Directors, Senior Store Leaders, Service Department and Sales employees shall be granted 80 hours of PTO to be utilized during the remaining calendar year, with the exception of up to 40 hours of PTO, which may be carried into and used during the first calendar month of the new year (if not used, such carried over PTO will be forfeited without compensation on January 31st). Thereafter, in the following calendar year, full-time Managers, Directors, Senior Store Leaders, Service Department and Sales employees shall be eligible to accrue PTO at a rate of 2 hours per completed weekly pay period, but in no event shall be eligible to accrue more than 80 hours of PTO in a calendar year.

  - For example, if a Manager began their employment with Devocion on June 1, 2025, and has been continuously employed through April 1, 2026, that Manager shall be granted 80 hours of PTO on April 1, 2026. Any accrued but unused PTO as of December 31, 2026 shall be forfeited, with the exception of up to 40 hours of PTO, which may be carried into and used during the first calendar month of the new year (if not used, such carried over PTO will be forfeited without compensation on January 31st). Therefore, on January 1, 2027, the manager (i) shall begin accruing

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2 hours of PTO per completed weekly pay period, up to 80 hours, and (ii) may have an additional amount of up to 40 hours of PTO carried over from 2026 that must be used by or otherwise expires on January 31, 2027.

- All Other Full-Time Employees:
    - All other full-time employees shall be eligible to accrue up to 40 hours (i.e., 5 days) of PTO in a calendar year after their first ten (10) consecutive months of active employment with Devoción.
    - Following the first ten (10) consecutive months of active employment, full-time employees shall be granted 40 hours of PTO to be utilized during the remaining calendar year, with the exception of up to 40 hours of PTO, which may be carried into and used during the first calendar month of the new year (if not used, such carried over PTO will be forfeited without compensation on January 31st). Thereafter, in the following calendar year, full-time employees shall be eligible to accrue PTO at a rate of 2 hours per completed weekly pay period, but in no event shall be eligible to accrue more than 40 hours of PTO in a calendar year with the exception of up to 40 hours of PTO, which may be carried into and used during the first calendar month of the new year (if not used, such carried over PTO will be forfeited without compensation on January 31st).
    - For example, if a full-time Barista began their employment with Devoción on June 1, 2025, and has been continuously employed through April 1, 2026, the full-time Barista shall be granted 40 hours of PTO on April 1, 2026 that may only be utilized through December 31, 2026, with the exception of up to 40 hours of PTO which may be carried into and used during the first calendar month of the new year. Any unused PTO as of December 31, 2026 shall be forfeited, except for up to 40 hours of PTO. Beginning January 1, 2027, full-time Barista shall (i) begin accruing 2 hours of PTO per completed weekly pay period, up to 40 hours, and (ii) may have an additional amount of up to 40 hours of PTO carried over from 2026 that must be used by or otherwise expires on January 31, 2027.

General Terms and Conditions for the Use of PTO

- Employees are encouraged and expected to use all of their PTO in the calendar year it accrued. Any PTO that is not used in the calendar year it accrued will be forfeited, with the exception of up to 40 hours of PTO, which may be carried into and used during the first calendar month of the new year (if not used, such carried over PTO will be forfeited without compensation on January 31st). In other words,

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accrued, unused PTO in excess of 40 hours will not carry over or otherwise accumulate from one calendar year to the next, and will not be paid out under any circumstances. On January 31, if an employee has carried over any PTO (limited up to 40 hours) from the prior calendar year and it has not been used, it will be forfeited without compensation.

- If an employee wants to utilize PTO, they should request the time off to their manager as far in advance as possible, but not less than thirty (30) calendar days in advance (warning: employees who provide less than 30 days' advance notice may have their PTO request denied). Employees should avoid making travel or other arrangements or incurring any expenses related to a vacation until after they receive approval. PTO will be scheduled so as to provide adequate coverage of jobs and staff requirements. The Chief Executive Officer or his designee will make the final determination in this regard.

- Full-time Managers, Directors, and Shift Leaders wanting to utilize all 80 hours of available PTO, must notify their manager or whomever is their direct supervisor as far in advance as possible, but not less than ninety (90) calendar days in advance. Full-time Managers, Directors, and Shift Leaders should avoid making travel or other arrangements or incurring any expenses related to a vacation until after they receive approval directly from Human Resources (which may be contacted at hr@devocion.com). PTO will be scheduled so as to provide adequate coverage of jobs and staff requirements.

- PTO approvals will be based on business needs. Use of PTO must be scheduled with the understanding that efficient operation of Devoción's business be taken into consideration. Devoción may deny a request for PTO or ask you to re-submit the request for another time. When more than one employee requests the same time off, seniority, amount of advance notice, and the needs of Devoción will be considered to determine which request will be approved, in the event only a limited number can be approved.

- Each day of PTO shall consist of one day's pay (8 hours) at the employee's then regular (non-overtime) rate of pay.

- Employees who transition from full-time to part-time employment shall forfeit all granted/accrued but unused PTO.

- PTO is not counted for the purpose of calculating an employee's overtime hours of work or overtime premiums.

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- No employee shall be paid out any granted/accrued but unused PTO upon termination, whether voluntary or involuntary, of their employment with Devocion.

- No Manager, Director, or Shift Leader may be granted more than 104 hours of PTO in a calendar year, absent express, written authorization by the Chief Executive Officer. No other full-time employees shall accrue more than 64 hours of PTO in a calendar year, absent express, written authorization by the Chief Executive Officer.

- No employee may be permitted to use PTO absent the availability of a sufficient amount of granted/accrued but unused PTO. Employees are not permitted to hold negative PTO balances.

- PTO does not accrue during unpaid leaves of absence or other periods of inactive service. Likewise, the eight-month period of service prerequisite required of Managers, Directors, and Shift Leaders under this policy will be extended by the length of any unpaid leave of absence or other period of inactive service.

- Any employee on an approved unpaid leave of absence, such as Paid Family Leave, may at their discretion use all granted/accrued PTO balances as part of that leave.

- Unless previously approved and authorized in writing by the Chief Executive Officer, employees who give notice of resignation may not use granted/accrued PTO during the during their remaining scheduled days of work prior to the effective date of resignation.

- Any abuse of the PTO policy will be grounds for disciplinary action, up to and including termination of employment.

- To the extent an employee wishes to take time off, and has accrued PTO available, such time must be used to cover the absence, unless otherwise required by applicable law. Put simply, Devoción does not provide for “unpaid vacation” and there is no entitlement to take time off for such purpose.

Any exceptions to this policy must be approved in writing by the Chief Executive Officer.

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RIGHT TO REQUEST TEMPORARY SCHEDULING CHANGES

Effective February 22, 2026: All employees (whether full-time, part-time or temporary) who work 80 or more hours per calendar year in New York City may request temporary schedule changes. The Company will respond to requests for temporary scheduling changes as soon as practicable. **The Company is not obligated to grant any request for a temporary schedule change.** The Company may also propose an alternative temporary change, but an employee is not required to accept such alternative temporary change. The Company's calendar year is January 1 through December 31.

For purposes of this policy, a temporary schedule change means a limited alteration in the dates, hours, times, or locations where an employee is expected to work, including, but not limited to, using paid or unpaid time off, working remotely, swapping shifts with another employee, or shifting work hours to earlier or later in the work week or workday. Employees are not required to exhaust their paid or unpaid safe and sick leave before requesting a temporary schedule change in accordance with this policy.

The Company prohibits retaliation against an employee for requesting a schedule change, filing a complaint, communicating with others about the law, participating in an investigation or proceeding regarding an alleged violation of the law, mistakenly invoking rights under the law or otherwise exercising their rights under the law, even if the employee does not specifically reference the Temporary Schedule Change Law and even if the employee is not entitled to a schedule change.

JURY DUTY LEAVE

If an employee is called for jury duty, or subpoenaed for witness service, that employee will be allowed the necessary time off in accordance with applicable law.

If an employee requires time off from work to serve jury duty, Devoción will pay the applicable jury duty fee, up to $72 per day, for the first three (3) days of an employee's jury duty service. The remaining jury duty or witness service leave will be unpaid. Employees must notify their manager or Human Resources (which may be contacted at hr@devocion.com) immediately upon receiving notice of being called to jury duty or receiving a subpoena to testify as a witness. If an employee's absence from work will cause a hardship on the operations of Devoción, Devoción reserves the right to request that the employee ask the court to defer their service.

Employees serving on a jury must keep in touch with their manager on a daily basis so that arrangements can be made to cover the employees' job responsibilities during the period of jury service. An employee on "standby" is expected to work until being called to the court.

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If an employee is dismissed by the court on a day that they are otherwise scheduled to work and the dismissal occurs prior to the end of the employee's shift, the employee must immediately contact their manager or any member of the upper management team in your Department (e.g., Director or Regional Manager) to determine if the employee should report for work. If the employee is scheduled to work the evening or night shift on a day in which they have served jury duty, the employee is nevertheless expected to report to work.

Employees must obtain a Certificate of Jury Service from the court and turn it over to either their manager upon returning to work.

TIME-OFF TO VOTE

Devoción encourages all employees to fulfill their civic responsibilities and to vote in public elections.

Devoción provides employees who are registered voters with up to two hours of paid time off to vote, if they do not have sufficient time outside of their scheduled working hours in which to vote. Additional time off will be without pay, except that exempt employees may receive pay, as required by applicable law. Four consecutive hours between the opening of the polls and the start of the employee's work shift or between the end of the employee's work shift and the closing of the polls will be considered sufficient time outside of work to vote.

Time off to vote will be provided only at the beginning or end of the employee's shift, unless the Company and the employee mutually agree to different timing. Employees intending to take leave to vote must inform their supervisor at least two, but not more than 10, working days prior to Election Day. The employee's supervisor will designate when the leave should be taken (e.g., at the beginning or end of the shift).

WORKERS' COMPENSATION BENEFITS

In the event of a work-related accident or illness, employees may be covered by workers' compensation insurance. The amount of benefits payable and the duration of payment depend on the nature of your injury or illness.

Reporting a Work-Related Injury or Illness

If an employee is injured or becomes ill on the job, the employee must do the following:

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- Report the injury immediately to their Store Leader, Senior Store Leader, manager, or Human Resources (which may be contacted at hr@devocion.com);
- Complete an accident report, and be sure to answer all questions, giving a detailed report of what happened; and
- Where needed, obtain follow-up medical help.

Following this procedure ensures that Devoción can assist employees in obtaining appropriate medical treatment. Employees' failure to follow this procedure may delay or jeopardize benefits.

Leaves of Absence/Accommodation

Employees who need to take time off from work due to a workers' compensation illness or injury may also be eligible for a leave of absence under the Company's leaves of absence or reasonable accommodation policies. Employees should consult with their manager for additional information.

Return to Work

Employees who are ready to return to work following a workers' compensation-related leave of absence must supply a certification from a health care provider confirming the employee's ability to return to work.

Fraud

The Company will notify the workers' compensation insurance company if we have reason to believe an employee has supplied false or misleading information in connection with a claim and/or has filed a fraudulent claim. Workers' compensation fraud is a crime and may also be grounds for disciplinary action, up to and including termination of employment.

SHORT-TERM DISABILITY

Employees may also be eligible for short-term disability benefits if they are ill or injured and unable to work. Devoción maintains short-term disability plans in accordance with applicable state law. Employees should direct any questions regarding short-term disability benefits to Devoción's Human Resources (which may be contacted at hr@devocion.com).

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MILITARY LEAVE

Regular full-time and part-time employees will be granted time off from work for military training or active duty due to military service in the Armed Forces, Reserves or National Guard of the United States will be granted in accordance with the applicable laws. Employees returning from active duty or military training will be reinstated to the same position, or to a position of like seniority, status and pay, unless Devoción's circumstances have changed such that it is impossible or unreasonable to do so. To be eligible for reinstatement, employees must:

- Receive a certificate of completion duly executed by an officer of the applicable force or militia;
- Be qualified to perform their job duties; and
- Apply for reemployment within 90 days of discharge from duty, except that employees retuning from training or school must reapply within 10 days and employees returning from initial full-time training duty or initial active duty training with or in the United States Armed Forces must apply for reemployment within 60 days of the end of such training.

An employee who is reinstated to their previous position after training or active duty will not be terminated without cause in the year following reinstatement.

MILITARY SPOUSE LEAVE

Employees who work an average of 20 or more hours per week, who are the spouse of a member of the United States armed forces, national guard, or reserves who has been deployed during a period of military conflict (to a combat zone of operations or a combat theater) may be allowed up to 10 days of unpaid leave to use when their spouse is on leave from the military. Employees who seek leave under this policy may be required to provide documentation to support their request.

For purposes of this policy, "period of military conflict" means a period of war declared by the United States Congress, or in which a member of a reserve component of the armed forces is ordered to active duty.

Devoción will not retaliate or tolerate retaliation or harassment against employees for requesting or taking military spouse leave.

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BLOOD DONATION LEAVE

Employees who work an average of 20 or more hours per week will be granted an unpaid leave of absence if they seek to donate blood. Eligible employees will be granted up to three hours of leave per calendar year to donate blood off-site.

Except in emergencies, employees who seek leave under this policy must give reasonable notice to their supervisor of at least three working days prior to taking leave for blood donation. Employees must also provide documentation to their supervisor immediately after such leave is taken.

The Company will not retaliate or tolerate retaliation against an employee for requesting or taking blood donation leave.

BONE MARROW LEAVE

Employees who work an average of 20 hours or more each week are eligible to receive up to 24 hours of unpaid leave to donate bone marrow. Please provide Human Resources (which may be contacted at hr@devocion.com) with written physician verification of the purpose and length of each leave. Leave under this policy will be unpaid except that exempt employees will receive pay when required by applicable federal or state law.

Devoción will not retaliate or tolerate retaliation against an employee for requesting or taking bone marrow donation leave.

CRIME VICTIM LEAVE

Eligible employees may take time off from work to comply with a subpoena to (1) testify in a criminal proceeding (including time off to consult with the district attorney); (2) give a statement at a sentencing proceeding; (3) give a victim impact statement at a pre-sentencing proceeding; or (4) give a statement at a parole board hearing.

Time off under this policy is unpaid except that exempt employees will not incur any reduction in pay for a partial week's absence for leave under this policy.

Leave Eligibility

Employees are eligible for time off under this policy if they are:

- The victim of the crime at issue in the proceedings;

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- The victim's next of kin;
- The victim's representative (a person who represents or stands in the place of another person, including an agent, attorney, guardian, conservator, executor, heir or parent of a minor) if the victim is deceased as a result of the offense;
- A good Samaritan (someone who acts in good faith to: (1) apprehend a person who has committed a crime in their presence; (2) prevent a crime or an attempted crime from occurring: or (3) aid a law enforcement officer in effecting an arrest); or
- Pursuing an application or the enforcement of an order of protection as provided under relevant law.

Notice and Certification

Employees must notify their supervisor of the need to take a leave under this policy no later than the day before the absence. In addition, employees must provide Human Resources (which may be contacted at hr@devocion.com) with verification of their service upon request.

No Retaliation

Devoción will not retaliate, or tolerate retaliation, against any employee who seeks or obtains leave under this policy.

LEAVE FOR VICTIMS OF DOMESTIC VIOLENCE

Devoción will reasonably accommodate employees who are the victim of domestic violence who need a reasonable amount of time off for the following reasons, unless providing such accommodation would result in an undue hardship:

- Seek medical attention for injuries caused by domestic violence, including for a child who is a victim of domestic violence;
- Obtain services from a domestic violence shelter, program, or rape crises center;
- Obtain psychological counseling related to domestic violence incidents, including for a child who is a victim of domestic violence;
- Participate in safety planning or other actions to increase safety from future incidents of domestic violence; or

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- Obtain legal services, assist in the prosecution of an offense or appear in court in relation to an incident of domestic violence.

Employees must give Devoción reasonable advance notice of their intention to take leave for this purpose unless such advance notice is not feasible. An employee who cannot give reasonable advance notice must provide certification supporting the need for leave within a reasonable time after the absence. Acceptable forms of certification include:

- A police report indicating the employee or their child is a victim of domestic violence;
- A court order protecting or separating the employee or their child from the perpetrator of domestic violence;
- Other evidence from the court or prosecuting attorney that the employee appeared in court; or
- Documentation from a medical professional, domestic violence advocate, health care provider, or counselor that the employee or their child was undergoing counseling or treatment for physical or mental injuries or abuse resulting from an act of domestic violence.]

When taking leave under this policy, an employee may use any available paid leave. Otherwise, leave will be unpaid. During the leave, Devoción will maintain any health insurance coverage being provided to eligible employees in the same manner as if the employee had not taken leave.

Except as otherwise required by law, Devoción will maintain the confidentiality of any information regarding an employee's status as a victim of domestic violence.

Devoción will not discriminate or retaliate against an employee because the employee is a victim of domestic violence or requests leave in accordance with this policy.

VOLUNTARY EMERGENCY RESPONDER LEAVE

Eligible employees will be allowed time off from work to perform duties as a volunteer firefighter or member of a volunteer ambulance service during a declared state of emergency, unless providing the leave would impose an undue hardship on Devoción's operations.

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To be eligible for leave under this policy, employees must have previously provided Devoción with written documentation from the fire department or ambulance service notifying Devoción of the employee's status as a volunteer firefighter or volunteer ambulance service member, or the employee's volunteer duties must be related to the declared emergency.

Leave under this policy will be unpaid for non-exempt employees, except that employees may elect to use any other accrued paid time off to which they are entitled.

Devoción may request certification of the need for leave in the form of a notarized statement from the head of the fire department or ambulance service setting for the time period that the employee's volunteer services were required.

ADOPTIVE PARENTS LEAVE

Employees who are adoptive parents will be permitted to take leave under the same terms as leave provided to biological parents, for the adoption of a child upon the start of the parent-child relationship. Leave will only be granted to employees who adopt children of preschool age or younger, or who adopt children under the age of 18 who are considered "hard to place" or handicapped under New York law.

For further information or to request leave under this policy, contact Human Resources (which may be contacted at hr@devocion.com).

FAMILY AND MEDICAL LEAVE ACT

The Company will grant family and medical leave in accordance with the requirements of applicable federal and state law in effect at the time the leave is granted. Although the federal and state laws sometimes have different names, the Company refers to these types of leaves collectively as "FMLA Leave." In any case, employees will be eligible for the most generous benefits available under applicable law.

Employee Eligibility

To be eligible for FMLA Leave benefits, employees must: (1) have worked for the Company for a total of at least 12 months; (2) have worked at least 1,250 hours over the previous 12 months as of the start of the leave; and (3) work at a location where at least 50 employees are employed by the Company within 75 miles, as of the date the leave is requested. Eligibility requirements may differ for employees who have been on a protected military leave of absence. If employees are unsure whether they qualify, they should contact Human Resources (which may be contacted

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at hr@devocion.com).

Reasons for Leave

Federal and state laws allow FMLA Leave for various reasons. Because employees' legal rights and obligations may vary depending upon the reason for the FMLA Leave, it is important to identify the purpose or reason for the leave. FMLA Leave may be used for one of the following reasons, in addition to any reason covered by an applicable state family/medical leave law:

- The birth, adoption or foster care of an employee's child within 12 months following birth or placement of the child (Bonding Leave);
- To care for an immediate family member (spouse, child, or parent) with a serious health condition (Family Care Leave);
- An employee's inability to work because of a serious health condition (Serious Health Condition Leave);
- A "qualifying exigency," as defined under the FMLA, arising from a spouse's, child's, or parent's "covered active duty" (as defined below) as a member of the military reserves, National Guard or Armed Forces (Military Emergency Leave); or
- To care for a spouse, child, parent or next of kin (nearest blood relative) who is a "Covered Servicemember," as defined below (Military Caregiver Leave).

Definitions

- **"Child"** for purposes of Bonding Leave and Family Care Leave, means a biological, adopted or foster child, a stepchild, a legal ward, or a child of a person standing in *loco parentis*, who is either under age 18, or age 18 or older and incapable of self-care because of a mental or physical disability at the time that FMLA Leave is to commence. "Child," for purposes of Military Emergency Leave and Military Caregiver Leave, means a biological, adopted or foster child, stepchild, legal ward, or a child for whom the person stood *in loco parentis*, and who is of any age.
- **"Parent"** for purposes of this policy, means a biological, adoptive, step or foster father or mother, or any other individual who stood *in loco parentis* to the person. This term does not include parents-in-law. For Military Emergency leave taken to provide care to a parent of a deployed military member, the parent must be incapable of self-care as defined by the FMLA.

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- **"Covered Active Duty"** means (1) in the case of a member of a regular component of the Armed Forces, duty during the deployment of the member with the Armed Forces to a foreign country; and (2) in the case of a member of a reserve component of the Armed Forces, duty during the deployment of the member with the Armed Forces to a foreign country under a call or order to active duty (or notification of an impending call or order to active duty) in support of a contingency operation as defined by applicable law.

- **"Covered Servicemember"** means (1) a member of the Armed Forces, including a member of a reserve component of the Armed Forces, who is undergoing medical treatment, recuperation or therapy, is otherwise in outpatient status, or is otherwise on the temporary disability retired list, for a serious injury or illness incurred or aggravated in the line of duty while on active duty that may render the individual medically unfit to perform their military duties, or (2) a person who, during the five (5) years prior to the treatment necessitating the leave, served in the active military, Naval, or Air Service, and who was discharged or released therefrom under conditions other than dishonorable (a "veteran" as defined by the Department of Veteran Affairs), and who has a qualifying injury or illness incurred or aggravated in the line of duty while on active duty that manifested itself before or after the member became a veteran.

- **"Spouse"** means the other person with whom an individual entered into marriage as defined or recognized under state law for purposes of marriage in the state in which the marriage was entered into, or, in the case of a marriage entered into outside of any state, if the marriage is valid in the place where entered into and could have been entered into in at least one State. This includes common law marriage and same sex marriage in places where these marriages are recognized.

- **"Key employee"** means a salaried FMLA-eligible employee who is among the highest paid 10 percent of all the employees employed by the employer within 75 miles of the employee's worksite.

Length of Leave

The maximum amount of FMLA Leave will be 12 workweeks in any 12-month period when the leave is taken for: (1) Bonding Leave; (2) Family Care Leave; (3) Serious Health Condition Leave; and/or (4) Military Emergency Leave. However, if both spouses work for the Company and are eligible for leave under this policy, the spouses will be limited to a total of 12 workweeks off between the two of them when the leave is for Bonding Leave or to care for a parent using Family Care Leave. The applicable "12-month period" utilized by the Company is a rolling 12-month period measured backward from the date an employee uses FMLA leave. Under this method, the

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12-month period is measured backward from the day the employee uses any FMLA leave.

The maximum amount of FMLA Leave for an employee wishing to take Military Caregiver Leave will be a combined leave total of 26 workweeks in a single 12-month period. A "single 12-month period" begins on the date of the employee's first use of such leave and ends 12 months after that date.

If both spouses work for the Company and are eligible for leave under this policy, the spouses will be limited to a total of 26 workweeks off between the two when the leave is for Military Caregiver Leave only or is for a combination of Military Caregiver Leave, Bonding Leave and/or Family Care Leave taken to care for a parent.

To the extent required by law, some extensions to leave beyond an employee's FMLA entitlement may be granted when the leave is necessitated by an employee's work-related injury or illness or by a "disability" as defined under the Americans with Disabilities Act and/or applicable state or local law. Certain restrictions on these benefits may apply.

Intermittent or Reduced Schedule Leave

Under some circumstances, employees may take FMLA Leave intermittently, which means taking leave in blocks of time, or by reducing the employee's normal weekly or daily work schedule. An employee may take leave intermittently whenever it is medically necessary to care for a family member with a serious health condition, or because the employee has a serious health condition and is unable to work. Military Emergency Leave may also be taken intermittently.

Leave taken intermittently may be taken in increments of no less than one hour. Employees who take leave intermittently or on a reduced work schedule basis for a planned medical treatment must make a reasonable effort to schedule the leave so as not to unduly disrupt the Company's operations. Please contact Human Resources (which may be contacted at hr@devocion.com) prior to scheduling planned medical treatment. If FMLA Leave is taken intermittently or on a reduced schedule basis due to foreseeable planned medical treatment, we may require employees to transfer temporarily to an available alternative position with an equivalent pay rate and benefits, including a part-time position, to better accommodate recurring periods of leave.

If employees have been approved for intermittent leave and they request leave time that is unforeseeable, they must specifically reference either the qualifying reason for leave or the need for FMLA leave at the time they call off.

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If an employee's request for intermittent leave is approved, the Company may later require the employee to obtain recertification of their need for leave. For example, the Company may request recertification if it receives information that casts doubt on an employee's report that an absence qualifies for FMLA Leave.

Notice and Certification

Bonding, Family Care, Serious Health Condition and Military Caregiver Leave Requirements

Employees are required to provide:

- When the need for the leave is foreseeable, 30 days advance notice or such notice as is both possible and practical if the leave must begin in less than 30 days (normally this would be the same day the employee becomes aware of the need for leave or the next business day);
- When the need for leave is not foreseeable, notice within the time prescribed by the Company's normal absence reporting policy, unless unusual circumstances prevent compliance, in which case notice is required as soon as is otherwise possible and practical;
- When the leave relates to medical issues, a completed Certification of Health-Care Provider form within 15 calendar days (for Military Caregiver Leave, an invitational travel order or invitational travel authorization may be submitted in lieu of a Certification of Health-Care Provider form);
- Periodic recertification (upon request); and
- Periodic reports during the leave.

Certification forms are available from Human Resources (which may be contacted at hr@devocion.com). At our expense, we may require a second or third medical opinion regarding the employee's own serious health condition or the serious health condition of the employee's family member. In some cases, we may require a second or third opinion regarding the injury or illness of a Covered Service Member. Employees are expected to cooperate with the Company in obtaining additional medical opinions that we may require.

When leave is for planned medical treatment, employees must try to schedule treatment so as not to unduly disrupt the Company's operations. Please contact Human Resources (which may be contacted at hr@devocion.com) prior to scheduling planned medical treatment.

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Recertification After Grant of Leave

In addition to the requirements listed above, if an employee's FMLA Leave is certified, the Company may later require medical recertification in connection with an absence that the employee reports as qualifying for FMLA Leave. For example, the Company may request recertification if (1) the employee requests an extension of leave; (2) the circumstances of the employee's condition as described by the previous certification change significantly (e.g., employee absences deviate from the duration or frequency set forth in the previous certification; employee's condition becomes more severe than indicated in the original certification; employee encounters complications); or (3) the Company receives information that casts doubt upon the employee's stated reason for the absence. In addition, the Company may request recertification in connection with an absence after six months have passed since the employee's original certification, regardless of the estimated duration of the serious health condition necessitating the need for leave. Any recertification requested by the Company will be at the employee's expense.

Military Emergency Leave Requirements

Employees are required to provide:

- As much advance notice as is reasonable and practicable under the circumstances;
- A copy of the covered military member's active duty orders when the employee requests leave and/or documentation (such as Rest and Recuperation leave orders) issued by the military setting forth the dates of the military member's leave; and
- A completed Certification of Qualifying Exigency form within 15 calendar days, unless unusual circumstances exist to justify providing the form at a later date.

Certification forms are available from Human Resources (which may be contacted at hr@devocion.com).

Failure to Provide Certification and to Return from Leave

Absent unusual circumstances, failure to comply with these notice and certification requirements may result in a delay or denial of the leave. If an employee fails to return to work at leave's expiration and has not obtained an extension of the leave, the Company may presume that the employee does not plan to return to work and has voluntarily terminated their employment.

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Compensation During Leave

Generally, FMLA Leave is unpaid. However, employees may be eligible to receive benefits through state-sponsored programs or the Company's sponsored wage-replacement benefit programs. Employees may also choose to use accrued PTO and sick leave, to the extent permitted by law and the Company's policy. All payments of wage-replacement benefits and accrued paid leave will be integrated so that employees will receive no greater compensation than their regular compensation during this period. Note that in certain circumstances, the Company may require employees to use accrued PTO to cover some or all of the FMLA Leave to the extent permissible under applicable law. The use of paid benefits will not extend the length of a FMLA Leave.

Benefits During Leave

The Company will continue making contributions to employee group health benefits during their leave on the same terms as if employees had continued to actively work. This means that if employees want their benefits coverage to continue during their leave, they must also continue to make the same premium payments that they are now required to make for themselves or their dependents. Employees taking Bonding Leave, Family Care Leave, Serious Health Condition Leave, and Military Emergency Leave will generally be provided with group health benefits for a 12-workweek period. Employees taking Military Caregiver Leave may be eligible to receive group health benefits coverage for up to a maximum of 26 workweeks. In some instances, the Company may recover premiums it paid on the employee's behalf to maintain health coverage if the employee fails to return to work following a FMLA Leave.

The employee's length of service as of the leave will remain intact, but accrued benefits such as PTO and sick leave may not accrue while on an unpaid FMLA Leave.

FMLA leave will run concurrent with any other applicable leave law, as well as the employee's receipt of workers' compensation, short-term disability or long-term disability benefits, if applicable, to the extent permitted under applicable law.

Job Reinstatement

Under most circumstances, employees will be reinstated to the same position they held at the time of the leave or to an equivalent position with equivalent pay, benefits, and other terms and conditions of employment. However, employees have no greater right to reinstatement than if they had been continuously employed rather than on leave. For example, if an employee would have been laid off if they had not gone on leave or, if the employee's position was eliminated during the leave, then the employee will not be entitled to reinstatement.

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Prior to being allowed to return to work, an employee wishing to return from leave that was taken for their own Serious Health Condition Leave must submit an acceptable release from a health care provider that certifies the employee may return to work, with or without an accommodation. For an employee on intermittent FMLA leave, such a release may be required if reasonable safety concerns exist regarding the employee's ability to perform their duties, based on the serious health condition for which the employee took the intermittent leave.

Key employees may be subject to reinstatement limitations in some circumstances. If employees are considered a "key employee," those employees will be notified of the possible limitations on reinstatement at the time the employee requests a leave of absence.

Confidentiality

Documents relating to medical certifications, recertifications or medical histories of employees or employees' family members will be maintained separately and treated by the Company as confidential medical records, except that in some legally recognized circumstances, the records (or information in them) may be disclosed to supervisors and managers, first aid and safety personnel or government officials.

Fraudulent Use of FMLA Prohibited

An employee who fraudulently obtains FMLA leave from the Company is not protected by FMLA's job restoration or maintenance of health benefits provisions. In addition, the Company will take all available appropriate disciplinary action against such employee due to such fraud.

Nondiscrimination

The Company takes its FMLA obligations very seriously and will not interfere, restrain or deny the exercise of any rights provided by the FMLA. We will not terminate or discriminate against any individual for opposing any practice, or because of involvement in any proceeding related to the FMLA. If an employee believes their FMLA rights have been violated in any way, they should immediately report the matter to Human Resources (which may be contacted at hr@devocion.com).

Additional Information

A Notice to Employees of Rights Under FMLA (WHD Publication 1420) is attached to this Handbook.

A number of states have family leave laws that provide leave benefits which exceed those available to employees under the FMLA.

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Employees should contact Human Resources with questions.

NEW YORK PAID FAMILY LEAVE

In accordance with the New York Paid Family Leave Benefits Law ("PFLBL"), eligible employees are entitled to a leave of absence to care for a family member with a serious health condition, bond with a new child, or assist with obligations that arise when a spouse, domestic partner, child or parent is called into active military service. Employees are also eligible to receive partial wage replacement benefits during the leave through a state-mandated Paid Family Leave Benefits program.

Employee Eligibility

New York employees who work 20 hours or more per week for 26 weeks are eligible for Paid Family Leave (PFL) under the PFLBL. Employees who work fewer than 20 hours per week are eligible for PFL after completing 175 days of employment.

Length of Paid Family Leave

Eligible employees may take up to twelve weeks of PFL in a consecutive 52-week period. Employees are limited to the maximum amount of PFL in a consecutive 52-week period, even if they begin employment with a different covered employer during the 52-week period.

Qualifying Reasons for Leave

PFL may be taken for the following reasons:

- To provide physical or psychological care (including, for example, emotional support, visitation, assistance in treatment, transportation, arranging for a change in care, assistance with essential daily living matters and personal attendant services) for a family member because of the family member's serious health condition;

- To bond with the employee's child during the first 12 months after the child's birth, or during the first 12 months after placement of the child for adoption or foster care; or

- For a "qualifying exigency," as defined under the federal Family and Medical Leave Act ("FMLA"), arising from the active duty military service (or notification of an

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impending call to active duty) of an employee's spouse, domestic partner, child or parent.

For purposes of this policy, a "family member" includes a child, parent, sibling, grandparent, grandchild, spouse or domestic partner. A "child" includes a biological, adopted or foster child, stepchild, the child of a domestic partner, a legal ward or someone to whom the eligible employee stands *in loco parentis*, meaning in the place of a parent. A "parent" includes a biological parent, foster parent, adoptive parent, stepparent, parent-in-law, parent of a domestic partner, legal guardian of the employee or an individual who stood *in loco parentis* to the employee when the employee was a child. A "sibling" includes a biological sibling, adopted sibling, half-sibling, and stepsibling.

PFL may not be taken for the employee's own disability or health condition. Employees taking PFL to provide care to a family member with a serious health condition must be present at the same location as the family member or engaged in reasonable travel related to providing care during the majority of the employment period for which the employee takes leave.

Devoción is not required to provide PFL to two employees at the same time to care for the same family member. If time off is provided to both employees, the PFL taken by each employee will be counted towards that employee's PFL entitlement.

Intermittent Leave

Employees can take PFL on an intermittent basis. Employees seeking intermittent leave must notify Devoción of the schedule for intermittent leave.

Employees taking PFL in weekly increments will be eligible for the maximum number of weeks of leave in any 52 consecutive week period. Employees can take PFL in daily increments. The number of days of PFL available will be based on the average number of days the employee works per week. For example, an employee who works an average of three days per week will receive the equivalent of three days per week for twelve weeks, up to a maximum of 36 days.

Wage Replacement Benefits

Eligible employees can receive wage replacement benefits through a state-mandated PFL benefits program for PFL. PFL benefits are administered by a third-party provider.

The PFL benefit amount will equal 67% of an employee's average weekly wage or the State's average weekly rate, whichever is lower. The State's average weekly wage is determined and periodically adjusted by the State of New York.

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An employee cannot receive both New York state disability benefits and PFL benefits for the same period of time. An eligible employee may opt to receive both disability and PFL benefits during a post-partum/baby bonding period, but may not receive both benefits at the same time. In addition, an employee who is eligible for both disability and PFL benefits during the same 52-week period cannot receive more than 26 total weeks of disability and PFL benefits combined during that time period.

Payroll Deductions

PFL benefits are funded by employee contributions made through payroll deductions. The amount of an employee's contribution depends on the employee's average weekly wage. The maximum deduction amount will be adjusted periodically by the State of New York. The amount of any deduction taken will be reflected on an employee's paystub.

Employees who are not eligible for PFL benefits because they are not scheduled to meet the eligibility criteria regarding weeks or days worked can sign a waiver of benefits that relieves them from making the PFL benefits contribution. Ineligible employees who wish to complete such a waiver should contact their manager or Human Resources (which may be contacted at hr@devocion.com). If, after signing the waiver, an employee's schedule changes such that the employee is scheduled to meet the eligibility requirements, the waiver will be deemed revoked within eight weeks of the schedule change. Once the waiver is revoked, the employee will be required to make PFL contributions, including a retroactive amount that covers contributions since the time of hire.

Requesting Leave

Employees seeking PFL must provide at least 30 days advance notice to Devoción when the need for leave is foreseeable. If the need for leave is unforeseeable, employees must provide notice as soon as practicable. The notice should include the timing and duration of the leave and identify the type of family leave needed. Failure to provide timely notice may result in a partial denial or delay in an employee's receipt of PFL. Employees must advise Devoción as soon as practicable if the dates of a scheduled leave change or are extended.

Employees seeking PFL benefits will also be required to submit a Request for Paid Family Leave Form and required certifications. Employees must submit proof of the need for PFL within 30 days of the commencement of leave. Devoción will complete its portion of the Request for Paid Family Leave Form and return it to the employee within three business days.

If the dates for PFL, including any intermittent use of PFL, are not specified on the Request for Paid Family Leave, payment of benefits may be withheld until the information is provided. An

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employee must request payment for a previously unspecified day of PFL within thirty days of the leave.

Employees are also required to provide additional documentation supporting the need for leave. Required documentation may include, for example, a birth certificate or adoption paperwork for bonding leave or a medical certification from a healthcare provider for leave to care for a family member's serious health condition.

Benefits

To the extent applicable, Devoción will continue making contributions to employee group health benefits during the leave on the same terms as if the employee had continued to actively work. This means that if employees want their benefits coverage to continue during the PFL, they must also continue to make the same premium payments that they are now required to make for themselves or their dependents. Failure to make timely payments may result in termination of health insurance coverage.

Effect on Other Rights and Paid Leave

When leave qualifies as protected family leave under both the PFLBL and the FMLA, leave entitlements under both laws will run concurrently. Employees will not receive more than the maximum family leave available under either the PFLBL or the FMLA, as applicable.

Employees can choose, but are not required, to use available vacation, paid sick leave or other paid time off to receive full salary or wages during some or all of the PFL.

Return from Leave

Under most circumstances, employees who return to work as scheduled at the end of PFL will be reinstated to the same position they held at the time of the leave or to a comparable position with comparable benefits, pay and other terms and conditions of employment. Employees are not entitled under the PFLBL to accrue employment benefits or obtain seniority during any period of PFL, nor are they entitled to any right, benefit or position to which they would have been entitled absent the PFL.

Fraudulent Use of PFL Prohibited

Employees who fraudulently obtain PFL from Devoción are not protected by the PFL's job restoration or maintenance of health benefits provisions and may be subject to disciplinary action, up to and including termination of employment.

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Protected Rights

Devoción takes its PFL obligations very seriously and will not interfere, restrain or deny the exercise of any right protected under the PFLBL. Devoción will not terminate or otherwise discriminate against any individual because that person uses or attempts to use PFL. If an employee believes that his or her PFLBL rights have been violated in any way, they should immediately report the matter to your manager or Human Resources (which may be contacted at hr@devocion.com).

OTHER BENEFITS OR LEAVES OF ABSENCE

Federal, state or local law may require that employers provide their employees with additional benefits or leaves of absence.

Further, some benefits (such as group health insurance coverage) are offered in accordance with benefit plans. Benefit plans offered by Devoción are defined in legal documents such as insurance contracts and summary plan descriptions. If employees are offered benefits, and if a question arises about the nature and extent of plan benefits or if there is a conflict in language, the formal language of the plan documents govern, not the informal wording of this Handbook or any other document or notice. Plan documents, if applicable, are available for employees' inspection. Devoción's designated benefit-plan administrators reserve the right to determine eligibility, interpretation and administration of issues related to benefits offered by Devoción. Eligibility for certain employment benefits may vary according to the position and status of the employee.

Please contact Human Resources (which may be contacted at hr@devocion.com) with any questions or for additional information.

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PAY PRACTICES

WORKWEEK

The term "workweek," as referenced throughout this employee handbook, is defined as the period beginning on Monday at 12:00 a.m. and ending on Sunday at 11:59 p.m.

EMPLOYMENT CATEGORIES

Exempt Employees

Exempt employees are those whose job assignments meet the federal and state requirements for overtime exemption. Exempt employees are compensated on a salary basis and are not eligible for overtime pay. Generally, executive, administrative, and professional employees are exempt from overtime. You will be informed if your status is exempt.

Exempt employees are expected to work as much of each workday as is necessary to complete their job duties. Exempt employees will receive applicable meal periods. No overtime or additional compensation is provided to exempt employees.

Non-Exempt Employees

Non-exempt employees are eligible for overtime. Nonexempt employees will be paid time and one-half their regular rate of pay for all hours worked in excess of 40 in one workweek and as otherwise required by applicable state and federal law. *All overtime work must be authorized in advance by your manager* or any member of the upper management team in your Department (e.g., Director or Regional Manager). Working overtime without prior authorization may result in disciplinary action, up to and including termination of employment. Non-exempt employees will also receive an extra hour of pay at the minimum wage rate on any day in which the employee's spread of hours (measured from the beginning to end of the employee's workday) exceeds ten hours.

WORK SHIFTS

An employee will be assigned a work schedule by their manager, which may change based on Devoción's needs. Staffing needs and operational demands may necessitate variations in scheduled starting and ending times, as well as variations in total hours that may be scheduled

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each day and week. Each employee is expected to be at work at their scheduled start time and, unless during a meal period, should not leave the premises without notifying their Store Leader, Senior Store Leader, or manager.

PAYROLL PROCEDURES

This policy describes some of the basic rules concerning our timekeeping and payroll procedures, as well as the steps employees should follow to ensure that they are paid properly for all time worked.

RECORDING TIME

If you are classified as a non-exempt employee, you must accurately record the time you work. Accurate records of hours worked are necessary to ensure that you will be paid correctly and receive full credit for the work you do. Failure to accurately record or report actual hours worked may result in disciplinary action, including termination of employment. An employee's submission of a time record constitutes a certification by the employee that the time recorded is true and accurate.

When you work, you must report all the time you work. Non-exempt employees are prohibited from working "off the clock" (*i.e.*, without reporting the time worked), and it is a violation of our policies for anyone to instruct or encourage another employee to do so, or to incorrectly report hours worked or alter another employee's time records. Altering, falsifying or otherwise tampering with any time sheet (your own or someone else's), or instructing or encouraging someone to do so, is prohibited and will result in disciplinary action, up to and including termination, for the employee(s) involved. If anyone directs or encourages you to incorrectly report your hours worked, or to alter another employee's time records, you should report the incident immediately to your manager or Human Resources (which may be contacted at hr@devocion.com).

Non-exempt employees should not work any time that is not authorized by their managers and should not start work early, finish work late, or perform any other extra or overtime work unless you are directed to do so. If you have any questions about when or how many hours you are expected to work, contact your manager or Human Resources (which may be contacted at hr@devocion.com).

Employees must review and approve their weekly time records (reflecting the hours worked) for the prior workweek to ensure accuracy of hours worked. Approvals for the prior

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workweek's time record must be provided by 11:00 AM Monday. If an employee finds an error or discrepancy, they should not approve of the time records and instead immediately contact their manager or Human Resources (which may be contacted at hr@devocion.com) for further assistance.

DEDUCTIONS

The law requires that Devoción make certain deductions from every employee's compensation, including applicable federal, state, and l or local income taxes and Social Security taxes. Your compensation may also be reduced for certain types of deductions, as permitted by law, such as your portion of health insurance premiums. Your compensation may also be reduced in compliance with state and federal orders, garnishments, IRS levy notices and/or assignments, with which Devoción is bound to comply. If you are notified that you are subject to any of these, please forward all information and correspondence you receive to Devoción's Human Resources (which may be contacted at hr@devocion.com). If Devoción is notified of any such order, garnishment, levy, or assignment, we will provide a copy of the same to you. Any garnishment, levy, or wage assignment will be deducted from your paycheck, in accordance with applicable law, and remitted to the appropriate party, every pay period until paid, or until an order to terminate the garnishment, levy, or assignment is received by Devoción.

REVIEW YOUR PAY STUB AND REPORT ANY ERRORS

We work hard to ensure that all employees are paid correctly, but mistakes can happen. When mistakes do occur and are called to our attention, we will promptly make any corrections necessary. Please review each paycheck and pay stub when you receive it to make sure your pay is correct. If you believe an error has occurred or if you have any questions about your paycheck or pay stub, please promptly report the matter to Devoción's Human Resources (which may be contacted at hr@devocion.com). If you have questions about deductions from your pay, if you believe you have been subject to any improper deductions, or if your pay does not accurately reflect your hours worked, please promptly report the matter to Human Resources. We will make every effort to ensure that you receive the pay to which you are entitled. We will not allow any form of retaliation against individuals who make good faith reports of alleged violations of this policy, or who cooperate in an investigation by Devoción, even if the reports do not reveal any errors or wrongdoing.

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DISCUSSION OF WAGES

No employee is prohibited from inquiring about, discussing or disclosing their wages or the wages of another employee, if voluntarily disclosed by that employee. Employees are not required to disclose their wages to anyone.

This policy does not apply to disclosure of other employee's wage information by an employee who has access to such information solely as part of their essential job functions and who, while acting on behalf of Devoción, makes unauthorized disclosure of that information. Devoción representatives may disclose employees' wages in response to a complaint or charge, or in furtherance of an investigation, proceeding, hearing or action under state law.

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POLICIES FOR TIPPED EMPLOYEES

TIP REPORTING AND RECORD-KEEPING

All tipped employees must report 100% of their tips and maintain sufficient records to show the amount of their tip income for the year. Failure to report and maintain accurate information in this regard may result in disciplinary action, up to and including termination.

TIP POOL POLICY

Café employees currently participate in a tip pool program limited to employees who customarily and regularly receive tips. Tips shall be shared only amongst tip-eligible employees at the location where the work is performed. For example, employees at the Williamsburg location shall not share tips with employees at the Flatiron location.

Credit Card Tips: The program currently requires that at the end of the workweek, baristas, store leaders, and senior store leaders at each café split tips received by the baristas according to the following formula:

(Total tips received in a workweek) divided by (total hours worked in the workweek) = tips/hour

(tips/hour) multiplied by (time worked in the workweek by a tipped employee (baristas, store leaders, and senior store leaders) = tips per person

For example, if Barista A works 10 hours in a workweek at the Williamsburg location, Barista B works 15 hours in a workweek at the location Williamsburg location, Store Leader A works 5 hours in a workweek at the Williamsburg location, and Store Leader B works 10 hours in a workweek at the Williamsburg location, the total hours worked in a workweek equals 40 hours. If the total credit card tips earned in the workweek equal $1,200, the total tips will be divided by 40 hours, equaling $30 in tips per hour. Thus, as per the formula, tips/hour = $30. Thereafter, the tips per person are calculated as follows:

Barista A receives $300 in tips ($30 multiplied by 10 hours = $300)

Barista B receives $450 in tips ($30 multiplied by 15 hours = $450)

Store Leader A receives $150 in tips ($30 multiplied by 5 hours = $150)

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Store Leader B receives $300 in tips ($30 multiplied by 10 hours = $300)

Cash Tips: The program currently requires that each night at closing, baristas at each café contribute all of the cash tips received into a tip pool to be distributed among baristas, store leaders, and senior store leaders according to the following formula:

(Total tips received) divided by (total hours worked) = tips/hour

(tips/hour) multiplied by (time worked by a tipped employee (barista or busser)) = tips per person

For example, if a barista works 6 hours, and a senior store leader works 4 hours on a workday, the total hours worked equals 10 hours. If the total cash tips received equals $100, the total tips will be divided by 10 hours, equaling $10 in tips per hour. Thus, as per the formula, tips/hour = $10. Thereafter, the tips per hour is multiplied by 6 hours worked by the barista, equaling $60 in tips for the barista; and the tips per hour is multiplied by 4 hours worked by the senior store leader, equaling $40 in tips for the senior store leader.

Baristas, store leaders and senior store leaders are not required to tip out any other employees or to pool their tips with any other employees.

Devoción reserves the right to change this tip sharing policy at any time and without prior notice.

SOLICITING TIPS IS PROHIBITED

Devoción staff is strictly prohibited from soliciting tips from customers, including but not limited to requesting that customers: (1) leave a certain tip amount, (2) leave their tips in a certain form, or (3) leave a tip at all. Violations of this policy will not be tolerated and shall result in adverse employment action, up to and including termination.

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SAFETY AND SECURITY

SMOKE-FREE WORKPLACE

Devoción provides a work environment that is smoke-free. Smoking is strictly prohibited inside its premises. For purposes of this policy, smoking includes vaping (i.e., the use of electronic cigarettes). Employees wishing to smoke (including vaping) must do so outside Devoción's facilities during scheduled work breaks.

SECURITY INSPECTIONS

Devoción wishes to maintain a work environment that is free of illegal drugs, marijuana, alcohol, firearms, explosives, or other improper materials. To this end, Devoción prohibits the control, possession, transfer, sale, or use of such materials on its premises to the extent permitted by applicable law. We require the cooperation of all employees in administering this policy.

Storage areas are provided for the convenience of employees but remain the sole property of Devoción. Accordingly, they, as well as any articles found within them, can be inspected by any agent or representative of Devoción at any time, either with or without prior notice.

In addition, in order to ensure the safety and security of employees and customers, and to protect our legitimate business interests, we reserve the right to question and inspect or search any employee or other individual entering onto or leaving Devoción premises or job sites. The inspection or search may include any packages or items that the individual may be carrying, including personal briefcases, handbags, knapsacks, shopping bags, etc. These items are subject to inspection and search at any time, with or without prior notice. Refusing to consent to search may result in disciplinary action, up to and including termination of employment.

NOTICE TO NEW YORK EMPLOYEES ON ELECTRONIC MONITORING

Devoción monitors, in its sole discretion, employees' use of its electronic resources. Any and all telephone conversations or transmissions, email or transmissions, or internet access or usage by an employee using any Company-owned electronic device or Company-owned system (including, but not limited to, a computer, telephone, wire, radio or electromagnetic,

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photoelectronic or photo-optical systems) may be subject to monitoring at any and all times and by any lawful means. For additional information, please contact Human Resources (which may be contacted at hr@devocion.com).

HOUSEKEEPING

All employees are expected to keep their work areas clean and organized. Common areas should be kept clean by those using them. Please clean up after meals, and dispose of trash properly.

WORK-RELATED INJURIES

Devoción provides a comprehensive workers' compensation insurance program at no cost to employees. This program covers most injuries or illnesses sustained in the course of employment that require medical, surgical, or hospital treatment.

An employee who sustains a work-related injury or illness should inform their manager or Human Resources (which may be contacted at hr@devocion.com) immediately. No matter how minor an on-the-job injury may appear, it is important that it be reported immediately. This will enable an eligible employee to qualify for coverage.

WORKPLACE VIOLENCE

The safety and security of employees is of vital importance to Devoción. Therefore, Devoción has adopted this zero-tolerance policy for workplace violence. Threats or acts of violence, including intimidation, bullying, harassment and/or coercion, which involve or affect Devoción employees, or which occur on Devoción's premises or that of a client, will not be tolerated.

The prohibition against threats and acts of violence applies to all persons involved in Devoción's operations, including, but not limited to, Devoción employees and other personnel, contract and temporary workers, consultants, contractors, customers, vendors, visitors, and anyone else on Devoción's premises. Violations of this policy by an employee will result in disciplinary action, up to and including termination from employment.

This policy also provides procedures for reporting, investigating and resolving any threats or acts of violence on Devoción's premises or otherwise affecting Devoción's employees.

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Workplace Violence Defined

Workplace violence is any conduct that is sufficiently severe, offensive or intimidating to cause an individual to reasonably fear for their personal safety or the safety of their family, friends and/or property such that employment conditions are altered or a hostile, abusive or intimidating work environment is created. Examples of workplace violence include, but are not limited to, the following:

- Threats or acts of violence or physical force occurring on Devoción's premises, regardless of the relationship between Devoción and the parties involved in the incident.

  Threats or acts of violence or physical force occurring off Devoción's premises involving someone who is acting in the capacity of a representative of Devoción.

  Threats or acts of violence or physical force occurring off Devoción's premises involving an employee of Devoción as a victim if Devoción determines that the incident may lead to an incident of violence on Devoción's premises.

- Threats or acts resulting in the conviction of an employee or agent of Devoción, or of an individual performing services for Devoción on a contract or temporary basis, under any criminal code provision relating to violence or threats of violence which adversely affects the business interests of Devoción.

Specific examples of conduct that may be considered threats or acts of violence under this policy include, but are not limited to, the following:

- Any act of physical, verbal or emotional abuse, force or violence, including but not limited to hitting, shoving or other such aggressive conduct directed toward another individual.

- Any threat of physical, verbal or emotional abuse, force or violence, or other aggressive conduct, directed toward another individual.

- Threatening an individual or their family, friends, associates or property with harm

- Any pattern of coercive behavior which involves any act or threat of abuse, force or violence, or other aggressive conduct.

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- Any act of physical, verbal or emotional abuse which one person uses to control or intimidate another or others; enlisting, coercing or asking others to do any of the above; and/or aiding others in doing any of the above.

- Harassing or threatening communications (including without limitation phone calls, emails, text messages, etc.).

- Surveillance or stalking.

- Actual or veiled threats of physical harm or like intimidation.

- Communicating an endorsement of the inappropriate use of firearms or weapons.

- Threats or attempts to commit suicide.

- The intentional destruction or threat of destruction of Devoción's or another's property.

Workplace violence generally does not refer to occasional comments of a socially acceptable nature. Such comments may include references to legitimate sporting activities, popular entertainment or current events. Rather, it refers to behavior that is personally offensive, threatening or intimidating.

Weapons Prohibited in Workplace

Devoción strictly prohibits employees or any person providing services to Devoción or located on Devoción's premises from possessing weapons of any kind at the workplace. The workplace includes any property owned or leased by Devoción, or occupied by groups of Devoción employees or persons providing services to Devoción. Unless such prohibition is contrary to local law, this specifically includes Devoción parking areas and Devoción vehicles. Employees are not permitted to transport or store weapons in vehicles owned or leased by Devoción and used by the employee for work purposes, unless the employee is required to transport or store a weapon as part of the employee's duties and they have written permission from Devoción's Human Resources. This policy prohibits the possession of concealed weapons as well as weapons carried openly.

The prohibition explicitly includes guns, rifles and firearms of any type, including those for which the holder has a legal permit. Other examples of prohibited weapons include, but are not limited to, knives, ammunition, bombs, bows and arrows, clubs, slingshots, metal knuckles and

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similar devices that by their design or intended use are capable of inflicting serious bodily injury or lethal force.

Searches and Inspections

An investigation into a report of workplace violence may require, with or without notice, an inspection of an employee's work area and/or personal property located in the workplace, including without limitation, a vehicle. As a condition of continued employment, all employees are expected to fully cooperate in any lawful inspection required as a result of a report of workplace violence. Failure to cooperate with Devoción's investigation of a report of workplace violence may result in disciplinary action, up to and including termination of employment.

Complaint Procedure

Any employee who sees, hears or learns of any conduct or statement that seems threatening or suspicious, any conduct that violates this policy, and/or any weapons on Devoción's premises must *immediately* report such conduct or statement to their manager, another manager, Human Resources (which may be contacted at hr@devocion.com), the CEO, or the Vice President of Operations. In the event that there is an immediate risk or imminent threat of violence, serious harm or life-threatening conduct, employees should report this *immediately* to 911, local police or law enforcement.

Employees experiencing domestic problems or abuse - or who know of coworkers who are experiencing domestic problems or abuse - are strongly encouraged to report these matters as well, so that Devoción can offer assistance, if possible. Similarly, any employee who obtains a restraining or protective order against another person, or who is the subject of a restraining or protective order, must immediately report this to their manager or Human Resources (which may be contacted at hr@devocion.com).

Devoción will not tolerate any retaliation against anyone who in good faith reports any of the above types of matters or who cooperates in the investigation of such report.

Devoción will immediately investigate any complaints of actual, threatened or suspected violence, and will take appropriate action which may include, depending on the circumstances:

- Removal of the individual from Devoción's premises.
- Notification of law enforcement authorities.

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- If the threat is posed by a Devoción employee, termination, suspension or other disciplinary action, or medical/psychiatric evaluation, as Devoción deems appropriate.

HEALTH AND CLEANLINESS

Devoción strives to maintain a clean and healthy work environment for all of its employees and customers. Because Devoción employees must regularly handle various food products, it is essential that all employees recognize and accept their responsibility for ensuring that these food products are prepared for sale in a clean and healthy manner. To that end, Devoción relies upon its employees to help keep all work areas in a clean and sanitary condition. Employees should therefore be conscientious about the cleanliness of their work environment and use appropriate measures to ensure that all food products are prepared in the healthiest manner possible.

Devoción requires all employees to engage in good personal hygiene during work hours. This includes, but is not limited to:

- Washing your hands after returning from the restroom or from breaks, or after blowing your nose, sneezing, coughing, or touching anything unsanitary, including face, hair or other parts of the body.
- Washing your hands often and always after handling food and money.
- Not wearing detectable perfumes, colognes and other aromatic scents that may detract from our coffee or food, distract or offend your co-workers and guests.
- Not keeping long fingernails or wearing artificial nails or hand jewelry (e.g., rings) to prevent contamination of food or other consumables and to facilitate handwashing.
- Ensuring that there is no detectable body odor, or odor of cigarette or cigar smoke, on your body. Such odors detract from our coffee and food, and may distract or offend your co-workers or guests.

If an employee believes that any unsanitary conditions may exist in the workplace, they should contact their manager, the CEO, or the Vice President of Operations immediately, even if there is reason to believe that the problem has been corrected.

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HAND WASHING

The New York State Department of Health requires that all employees involved with food preparation wash their hands and exposed portions of their arms with soap and water. Thorough hand washing is done by vigorously rubbing together the surfaces of lathered hands and arms for at least 20 seconds followed by a thorough rinse with clean water. Employees must use a single-service towel or hot air dryer to dry their hands.

REPORTING ILLNESS FOR EMPLOYEES WHO PREPARE/SERVE FOOD

Protecting the safety of the food we handle for our customers is critical. The top five most highly communicable foodborne disease organisms (or pathogens) are known as the "Big 5" by the U.S. Food and Drug Administration (FDA). The FDA requires specific reporting activities when associates have or have had exposure to one of the Big 5 organisms or have specific symptoms of communicable illnesses. This policy addresses mandatory reporting requirements aimed at preventing the transmission of disease-causing organisms via food or person to person.

"Big 5" – Top five most highly contagious foodborne pathogens that FDA requires employees to report. These are: (1) Hepatitis A, Norovirus; (2) Salmonella typhi (Typhoid-like Fever); (3) Shigella spp.; (4) Escherichia coli 0157:H7 (E. coli); and (5) other Enterohemorrohagic or Shiga toxin producing E.coli.

In accordance with FDA guidelines, it is Devoción policy that food handling employees report to the person in charge (manager or supervisor): (a) vomiting; (b) diarrhea; (c)jaundice (yellow skin or eyes); (d) sore throat with fever; (e) infected cuts and burns with pus on hands and wrists; or (f) exposure to Big 5 bacteria/viruses (or any related symptoms)

Once informed, managers/supervisors must protect the safety of the workplace environment by timely excluding or restricting infected or potentially infected employees

Failure to comply with this policy may lead to disciplinary action, up to and including termination.

AIRBORNE INFECTIOUS DISEASE EXPOSURE PREVENTION PLAN

A copy of Devoción's Airborne Infectious Disease Plan will be provided to you. The plan must be followed in the event the New York State Commissioner of Health designates an infectious disease as a highly contagious communicable disease. In such an event, employees will be notified of the designation as soon as practicable. For more information, contact any manager,

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Human Resources (which may be contacted at hr@devocion.com), the CEO, or the Vice President of Operations.

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TERMINATION OF EMPLOYMENT

VOLUNTARY TERMINATION

A voluntary termination means an employee has made the decision to end the working relationship with Devoción. Voluntary resignations include, but are not limited to, written or verbal resignation and job abandonment. An employee is considered to have abandoned the job if they fail to return within two days and have not notified Devoción of their intent to resign.

If you decide to leave your employment, you are asked to provide at least two (2) weeks written notice. This will give Devoción the opportunity to make the necessary adjustments in its operation.

INVOLUNTARY TERMINATION

An involuntary termination occurs when Devoción decides to end the working relationship with an employee. Involuntary terminations may occur for cause or for reasons other than cause. Involuntary terminations for cause include, but are not limited to, terminations for violating Devoción policy, misuse or theft of resources, the falsification of information or unsatisfactory work performance. Involuntary terminations for reasons other than cause include, but are not limited to, a reduction in workforce.

PAY AND BENEFITS UPON TERMINATION

Final wages will be paid in accordance with applicable. In accordance with Devoción policy, vacation, sick leave and floating holidays will not be paid upon termination unless otherwise required by law.

RETURN OF PROPERTY

Employees are required to return all Devoción property that is in their possession or control in the event of termination of employment, resignation, or layoff, or immediately upon request, including all confidential or proprietary information and all keys, computers, ID cards, or other Devoción-issued property. No information belonging to Devoción can be copied for the employee's use and Devoción may also take all action deemed appropriate to recover or protect its property.

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ACKNOWLEDGMENT

By signing this Acknowledgment, I acknowledge and agree that:

- I have received and read a copy of the Employee Handbook of Devoción, and I have been provided an opportunity to ask questions regarding the terms of the Employee Handbook and that I understand the terms of the Employee Handbook.

- I will abide by the rules, policies and standards set forth in the Employee Handbook, including, but not limited to, Devoción's policies with respect to: Equal Employment Opportunity, Harassment, Standards of Conduct, and the Use of Electronic Resources.

- Unless I have a signed agreement to the contrary, my employment with Devoción is at will, meaning that it is not for a specified period of time and that the employment relationship may be terminated at any time for any reason, with or without cause or notice, by me or Devoción. No oral or written statements or representations regarding my employment can alter this. Only the CEO has the authority to enter into an agreement that alters the at will relationship and then only in a writing signed by the employee and the CEO.

- Devoción reserves the right to revise, delete and add to the provisions of the Employee Handbook. All such revisions, deletions or additions must be in writing. No oral statements or representations can change the provisions of the Employee Handbook.

- I acknowledge that I have received and read Devoción's Notice to New York Employees of Electronic Monitoring. I understand that any and all of my telephone conversations or transmissions, email or transmissions, or internet access or usage by any electronic Company-owned device or Company-owned system (including but not limited to the use of a computer, telephone, wire, radio or electromagnetic, photoelectronic or photo-optical systems) may be subject to monitoring by the Company at any and all times and by any lawful means.

- I have received and read the Notice regarding the New York City Pregnancy Accommodations at Work, the New York City Earned Safe and Sick Time Act Notice of Employee Rights Form, New York State Policy on the Rights of Employees to Express Breast Milk in the Workplace, and the New York City Stop Sexual Harassment Act Fact Sheet ("Notices"). To the extent that I could not read, consider, or understand the Notices because they were in the English language, I acknowledge and agree that I asked for copies of the Notices in my primary language, and I received copies of the Notices in my primary language and/or the Notices were explained to me in my primary language by Devoción or its representatives. / *Recibí y leí el Aviso sobre los derechos de las trabajadoras embarazadas, el Formulario de Aviso de los Derechos del Empleado de la Ley de Seguridad de la Ganancia y la Enfermedad de la Ciudad de Nueva York, y la Hoja de*

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Información sobre la Ley de Detención del Acoso Sexual ("Notificaciones"). En la medida en que no pude leer, considerar o entender los Avisos porque estaban en el idioma inglés, reconozco y acepto que solicité copias de los Avisos en mi idioma primario, y recibí copias de los Avisos en mi idioma principal. El idioma y / o los Avisos me fueron explicados en mi idioma principal por Devoción o sus representantes.

- I acknowledge and agree that, to the extent that I could not read, consider, or understand any term of this Employee Handbook because it was in the English language, it was translated for me into the Spanish language and/or explained to me in the Spanish language by Devoción or its representatives. / *Yo reconozco y acepto que, en caso que no pueda leer, considerar, o entender cualquier término de Este Manual Del Empleado porque estaba en el idioma inglés, la totalidad de Este Manual Del Empleado fue traducido para mí en el idioma español y/o explicado a mí en el idioma español por el Devoción o los representantes del Devoción.*

Firmado por:

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Employee Signature

Santiago Obando

Print Name

3/16/2026

Date

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NOTICE

Pregnancy Accommodations at Work

The NYC Human Rights Law requires all employers with four or more employees, or one or more domestic worker, to provide reasonable accommodations to employees related to pregnancy, childbirth, and related medical conditions to enable them to continue working and/or return to work promptly while maintaining a healthy pregnancy. Employers are required to provide written notice of employees' rights under the Law, and can use this document to satisfy that requirement. As such, it should be posted in the workplace.

EMPLOYERS

Provide a clear policy and protocol for employees to request a reasonable accommodation. Work with your pregnant employee to promptly agree on a reasonable accommodation that:

- Values your employee's contributions to the workplace
- Helps your employee satisfy the essential requisites of her job
- Keeps them in the workplace for as long as they are able to continue working
- Is right for your employee and does not cause undue hardship to your business

Ignoring a request for a reasonable accommodation, failing to respond quickly, punishing, or firing your employee after they request one can expose you to damages and civil penalties. Employers are prohibited from asking for proof of pregnancy. Employers may request a doctor's note only when the accommodations requested by the employee involve time away from the workplace and when not otherwise prohibited by city, state, or federal law, including the NYC Earned Sick Time Act.

EMPLOYEES

If you need a reasonable accommodation to continue working or remain employed, you can request one. Examples include, but are not limited to:

- Breaks (e.g. to use the bathroom, eat or drink, or provide necessary rest)
- Changes to your work environment such as a seat or a fan
- Assistance with physically demanding tasks
- Time off or schedule adjustments
- A private, clean, non-bathroom space and breaks for expressing breast milk
- Light duty or a temporary transfer to a different position
- Time off to recover from childbirth

The type of reasonable accommodation appropriate for an employee should be tailored to the needs of the employee and the employer. If your request for a reasonable accommodation has been ignored or denied without an appropriate alternative, we can help. Call the NYC Commission on Human Rights at 212-416-0197 to report it.

NYC.gov/HumanRights or call **212-416-0197**

@NYCCHR

NYC Commission on Human Rights

NOTICE OF EMPLOYEE RIGHTS: Protected Time Off

Notice of Employee Rights: Protected Time Off

Your employer must give you this notice explaining your right to protected time off and paid prenatal leave.

Use

Use **Protected Time Off** to:

- Get medical care or to recover from your own illness or injury.
- Care for a family member who is sick or has a medical appointment.
- Care for a child. *Includes school holidays, child care disruptions.*
- Care for a family or household member with a disability.
- Leave an abuser if you're experiencing domestic violence.
- Take safety measures if you or a family member experience unwanted sexual contact, stalking, human trafficking, workplace violence, or domestic violence. *Includes reporting to law enforcement, getting services, serving as a witness, and more.*
- Stay home during extreme weather events or other public emergencies.
- Attend public benefits or housing appointments or hearings.

Use **Paid Prenatal Leave** to:

- Get health care for yourself during your pregnancy.

Amount

Your employer must provide the following amounts of leave:

	Protected Time Off Per Calendar Year*		**Paid Prenatal Leave Per Year**
Employer Size	**Immediately Available**	**Accrued** (1 hour for every 30 hours worked)	**Immediately Available**
100 or more employees	32 hours ***Unpaid***	Up to 56 hours ***Paid***	20 hours ***Paid***
5-99 employees OR more than $1 million in business earnings	32 hours ***Unpaid***	Up to 40 hours ***Paid***	20 hours ***Paid***
Household (You work as a babysitter, housekeeper, or companion.)	32 hours ***Unpaid***	Up to 40 hours ***Paid***	20 hours ***Paid***
1-4 employees AND less than $1 million in business earnings	32 hours ***Unpaid***	Up to 40 hours ***Unpaid***	20 hours ***Paid***

*Your employer's calendar year is: January _____ to December _____

Your employer can only require you to give advance notice of an expected use of protected time off; for example, to attend a scheduled doctor's appointment or court hearing. **You do not have to give advance notice of an unexpected use of protected time off; for example, illness or child care disruption**.

You do not have to give your employer details about why you used protected time off. If you use four or more workdays in a row, your employer can require documentation. **Your employer can't require documentation if you use three or fewer consecutive days.**

Required Written Disclosures

Your employer must:

- Give you a written policy that explains how to use your protected time off and paid prenatal leave.
- Tell you how much protected time off you have used and have left each pay period.

No Retaliation

It is illegal to punish or fire employees for requesting or using leave or for reporting violations.
You have the right to leave regardless of your immigration status.

Contact Consumer and Worker Protection to learn more or to file a complaint.

Visit **nyc.gov/workers** | Call **311** and ask for "Protected Time Off"

You can also make an ANONYMOUS tip.

02/22/2026

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STOP SEXUAL HARASSMENT ACT FACTSHEET

STOP SEXUAL HARASSMENT ACT FACTSHEET

All employers are required to provide written notice of employees' rights under the Human Rights Law both in the form of a displayed poster **and** as an information sheet distributed to individual employees at the time of hire. This document satisfies the information sheet requirement.

The NYC Human Rights Law

The NYC Human Rights Law, one of the strongest anti-discrimination laws in the nation, protects all individuals against discrimination based on gender, which includes sexual harassment in the workplace, in housing, and in public accommodations like stores and restaurants. Violators can be held accountable with civil penalties of up to $250,000 in the case of a willful violation. The Commission can also assess emotional distress damages and other remedies to the victim, can require the violator to undergo training, and can mandate other remedies such as community service.

Sexual Harassment Under the Law

Sexual harassment, a form of gender-based discrimination, is unwelcome verbal or physical behavior based on a person's gender.

Some Examples of Sexual Harassment

- unwelcome or inappropriate touching of employees or customers
- threatening or engaging in adverse action after someone refuses a sexual advance
- making lewd or sexual comments about an individual's appearance, body, or style of dress
- conditioning promotions or other opportunities on sexual favors
- displaying pornographic images, cartoons, or graffiti on computers, emails, cell phones, bulletin boards, etc.
- making sexist remarks or derogatory comments based on gender

Retaliation Is Prohibited Under the Law

It is a violation of the law for an employer to take action against you because you oppose or speak out against sexual harassment in the workplace. The NYC Human Rights Law prohibits employers from retaliating or discriminating "in any manner against any person" because that person opposed an unlawful discriminatory practice. Retaliation can manifest through direct actions, such as demotions or terminations, or more subtle behavior, such as an increased work load or being transferred to a less desirable location. The NYC Human Rights Law protects individuals against retaliation who have a good faith belief that their employer's conduct is illegal, even if it turns out that they were mistaken.

Report Sexual Harassment

If you have witnessed or experienced sexual harassment inform a manager, the equal employment opportunity officer at your workplace, or human resources as soon as possible.

Report sexual harassment to the NYC Commission on Human Rights. Call 212-416-0197 or visit NYC.gov/HumanRights to learn how to file a complaint or report discrimination. You can file a complaint anonymously.

State and Federal Government Resources

Sexual harassment is also unlawful under state and federal law where statutes of limitations vary.

To file a complaint with the New York State Division of Human Rights, please visit the Division's website at **www.dhr.ny.gov**.

To file a charge with the U.S. Equal Employment Opportunity Commission (EEOC), please visit the EEOC's website at **www.eeoc.gov**.

@NYCCHR

NYC.gov/HumanRights

NYC Commission on Human Rights

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NEW YORK CITY "KNOW YOUR RIGHTS AT WORK" POSTER

কর্মক্ষেত্রে আপনার অধিকার সম্পর্কে জানুন

Conozca sus derechos en el trabajo

了解您的职场权利

瞭解您的職場權利

Know your rights at work

Connaître ses droits au travail

Konn dwa w nan travay la

귀하의 직장 권리 알기

کام پر اپنے حقوق کو جانیں

Poznaj swoje prawa pracownicze

اعرف حقوقك في العمل

Знайте свои трудовые права

NYC Consumer and Worker Protection

nyc.gov/workers | 311

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NEW YORK STATE POLICY ON THE RIGHTS OF EMPLOYEES TO EXPRESS BREAST MILK IN THE WORKPLACE

INTRODUCTION AND PURPOSE

New York State Labor Law Section 206-c gives all employees in New York the right to express breast milk in the workplace. This law applies to all public and private employers in New York State, regardless of size or the nature of their business.

The New York State Department of Labor has developed the official policy on breast milk expression in the workplace as required by the law, ensuring that all employees know their rights and all employers understand their responsibilities. This policy is the minimum required standard, but employers are encouraged to include additional accommodations tailored to their workplace.

With the information provided below, employees will learn how much time they are allowed for breast milk expression, the kind of space employers are required to provide for breast milk expression, how to notify employers about the need to express breast milk in the workplace, and how to notify the Department of Labor if these rights are not honored.

Employers are required to provide this policy in writing to all employees when they are hired and again every year after. Employers are also required to provide the policy to employees as soon as they return to work following the birth of a child.

USING BREAK TIME FOR BREAST MILK EXPRESSION

Employers must provide thirty (30) minutes of paid break time for their employees to express breast milk when the employee has a reasonable need to express breast milk. Employees must be permitted to use existing paid break or meal time if they need additional time for breast milk expression beyond the paid 30 minutes. This time must be provided for up to three years following childbirth. Employers must provide paid break time as often as an employee reasonably needs to express breast milk. The number of paid breaks an employee will need to express breast milk is unique to each employee and employers must provide reasonable break times based on the individual. Employers are prohibited from discriminating in any way against an employee who chooses to express breast milk in the workplace.

An employer is prohibited from requiring an employee to work before or after their normal shift to make up for any time used as paid break time to express breast milk.

All employers must continue to follow existing federal and state laws, regulations, and guidance regarding mealtimes and paid break time regardless of whether the employee uses such time to express breast milk. For additional information regarding what constitutes a meal period or a break period under state and federal law, please see the following resources:

- NY Department of Labor Website on Day of Rest, Break Time, and Meal Periods: **dol.ny.gov/day-rest-and-meal-periods**
- NY Department of Labor FAQs on Meal and Rest Periods: **dol.ny.gov/system/files/documents/2021/03/meal-and-rest-periods-frequently-asked-questions.pdf**
- U.S. Department of Labor FLSA FAQ on Meal and Rest Periods: **dol.gov/agencies/whd/fact-sheets/22-flsa-hours-worked**
- U.S. Department of Labor FLSA Fact Sheet on Compensation for Break Time to Pump Breast Milk: **dol.gov/agencies/whd/fact-sheets/73-flsa-break-time-nursing-mothers**

While an employer cannot require that an employee works while expressing breast milk, Labor Law 206-c does not otherwise prevent an employee from voluntarily choosing to do so if they want to.

Paid breaks provided for the expression of breast milk must be 30 minutes. An employee must be allowed to use regular break or meal time to take a longer paid break if needed. Employees may also opt to take shorter paid breaks.

Employees who work remotely have the same rights to paid time off for the purpose of expressing breast milk, as all other employees who perform their work in-person.

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MAKING A REQUEST TO EXPRESS BREAST MILK AT WORK

If an employee wants to express breast milk at work, they must give the employer reasonable advance notice, generally before returning to the workplace if the employee is on leave. This advance notice is to allow the employer time to find an appropriate location and adjust schedules if needed.

Employees wishing to request a room or other location to express breast milk in the workplace should do so by submitting a written request to their direct supervisor or individual designated by their employer for processing requests. Employers must respond to this request for a room or other location to express breast milk in writing within five days.

Employers must notify all employees in writing through email or printed memo when a room or other location has been designated for breast milk expression.

LACTATION ROOM REQUIREMENTS

In addition to providing the necessary time during the workday, employers must provide a private room or alternative location for the purpose of breast milk expression. **The space provided for breast milk expression cannot be a restroom or toilet stall.**

The room or other location must:

- Be close to an employee's work area
- Provide good natural or artificial light
- Be private – both shielded from view and free from intrusion
- Have accessible, clean running water nearby
- Have an electrical outlet (if the workplace is supplied with electricity)
- Include a chair
- Provide a desk, small table, desk, counter or other flat surface

There does not need to be a separate space for every nursing employee. An employer may dedicate a single room or other location for breast milk expression. Should there be more than one employee at a time needing access to a lactation room, an employer may dedicate a centralized location to be used by all employees.

Any space provided for breast milk expression must be close to the work area of the employee(s) using the space. The space must be in walking distance, and the distance to the location should not significantly extend an employee's needed break time.

Employers located in shared work areas, such as office buildings, malls and similar spaces may work together to establish and maintain a dedicated lactation room, as long as such space(s) are a reasonable distance from the employees using the room. Each employer utilizing this common space is individually responsible for making sure the room meets the needs of their employees.

If there is not a separate room or space available for lactation, an employer may use a vacant office or other available room on a temporary basis. This room must not be accessible to the public or other employees while an employee is using it for breast milk expression.

As a last resort, an available cubicle may be used for breast milk expression. A cubicle can only be used if it is fully enclosed with a partition and is not otherwise accessible to the public or other employees while being used for breast milk expression. The cubicle walls must be at least seven feet tall to insure the employee's privacy.

To ensure privacy, if the lactation room has a window, it must be covered with a curtain, blind or other covering.

In addition, the lactation space should have a door equipped with a functional lock. If this is not possible (such as in the case of a fully enclosed cubicle), as a last resort, an employer must utilize a sign advising the space is in use and not accessible to other employees or the public.

If the workplace has a refrigerator, employers must allow employees to use it to store breast milk. However, employers are not responsible for ensuring the safekeeping of expressed milk stored in any refrigerator in the workplace.

Employees are required to store all expressed milk in closed containers and bring milk home each evening.

The space designated for expressing breast milk must be maintained and clean at all times.

If an employer can demonstrate undue hardship in providing a space with the above requirements, the employer must still provide a room or other location - other than a restroom or toilet stall - that is in close proximity to the work area where an employee can express breast milk in privacy, that meets as many of the requirements as possible.

Undue hardship is defined in the statute as "causing significant difficulty or expense when considered in relation to the size, financial resources, nature, or structure of the employer's business." **However, an employer may not deny an employee the right to express breast milk in the workplace due to difficulty in finding a location.**

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NEW YORK STATE DEPARTMENT OF LABOR RESOURCES

If an employee believes that they are experiencing retaliation for expressing breast milk in the workplace, or that their employer is in violation of this policy, they should contact the New York State Department of Labor's Division of Labor Standards. Call us at **1-888-52-LABOR**, email us at LSAsk@labor.ny.gov, or visit our website at **dol.ny.gov/breast-milk- expression-workplace to file a complaint**.

A list of our offices is available at **dol.ny.gov/location/contact-division-labor-standards**.

Complaints are confidential.

FEDERAL RESOURCES

The federal PUMP Act went into effect in 2023, expanding protections for almost all employees expressing breast milk at work. Under the PUMP Act, any covered workers not provided with breaks and adequate space for up to a year after the birth of a child are able to file a complaint with the U.S. Department of Labor or file a lawsuit against their employers. For more information, please visit **dol.gov/agencies/whd/pump-at-work**.

P705 (6/24)

The New York State Department of Labor is an Equal Opportunity Employer/Program.
Auxiliary aides and services are available upon request and free of charge to individuals with disabilities TTY/TDD 711 or 1-800-662-1220 (English) / 1-877-662-4886.

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AIRBORNE INFECTIOUS DISEASE EXPOSURE PREVENTION PLAN

WE ARE YOUR DOL

NEW YORK STATE | Department of Labor

Model Airborne Infectious Disease Exposure Prevention Plan for Food Service

The purpose of this plan is to protect employees against exposure and disease during an airborne infectious disease outbreak. This plan goes into effect when an airborne infectious disease is designated by the New York State Commissioner of Health as a highly contagious communicable disease that presents a serious risk of harm to the public health. This plan is subject to any additional or greater requirements arising from a declaration of a state of emergency due to an airborne infectious disease, as well as any applicable federal standards.

Employees should report any questions or concerns with the implementation this plan to the designated contact.

This plan applies to all "employees" as defined by the New York State Labor Law 218-b, which means any person providing labor or services for remuneration for a private entity or business within the state, without regard to an individual's immigration status, and shall include part-time workers, independent contractors, domestic workers, home care and personal care workers, day laborers, farmworkers and other temporary and seasonal workers. The term also includes individuals working for digital applications or platforms, staffing agencies, contractors or subcontractors on behalf of the employer at any individual work site, as well as any individual delivering goods or transporting people at, to or from the work site on behalf of the employer, regardless of whether delivery or transport is conducted by an individual or entity that would otherwise be deemed an employer under this chapter. The term does not include employees or independent contractors of the state, any political subdivision of the state, a public authority, or any other governmental agency or instrumentality.

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I. RESPONSIBILITIES

This plan applies to all employees of Devocion, and [all]/[the following work sites]:

Devocion DUMBO LLC, Devocion Williamsburg LLC, Devocion NOMAD LLC
Devocion Livingston LLC, Devocion Lexington LLC, Devocion Flatiron

This plan requires commitment to ensure compliance with all plan elements aimed at preventing the spread of infectious disease. The following supervisory employee(s) are designated to enforce compliance with the plan. Additionally, these supervisory employees will act as the designated contacts unless otherwise noted in this plan:

Name	Title	Location	Phone
Victor DePaz Calvo	VP of Operations	69 Grand St Brooklyn, NY 11249	917.379.3173
Humberto Camacho II	District Manager	69 Grand St Brooklyn, NY 11249	646.209.2497

II. EXPOSURE CONTROLS DURING A DESIGNATED OUTBREAK

A. MINIMUM CONTROLS DURING AN OUTBREAK

During an airborne infectious disease outbreak, the following minimum controls will be used in all areas of the worksite:

1. **General Awareness:** Individuals may not be aware that they have the infectious disease and can spread it to others. Employees should remember to:
   - Maintain physical distancing;
   - Exercise coughing/sneezing etiquette;
   - Wear face coverings, gloves, and personal protective equipment (PPE), as appropriate;
   - Individuals limit what they touch;
   - Stop social etiquette behaviors such as hugging and hand shaking, and
   - Wash hands properly and often.
2. **"Stay at Home Policy":** If an employee develops symptoms of the infectious disease, the employee should not be in the workplace. The employee should inform the designated contact and follow New York State Department of Health (NYSDOH)and Centers for Disease Control and Prevention (CDC) guidance regarding obtaining medical care and isolating.
3. **Health Screening:** Employees will be screened for symptoms of the infectious disease at the beginning of their shift. Employees are to self-monitor throughout their shift and report any new or emerging signs or symptoms of the infectious disease to the designated contact. An employee showing signs or symptoms of the infectious disease should be removed from the workplace and should contact a healthcare professional for instructions. The health screening elements will follow guidance from NYSDOH and CDC guidance, if available.

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4. **Face Coverings:** When in use, face coverings must cover the nose and mouth, and fit snugly, but comfortably, against the face. The face covering itself must not create a hazard (e.g., have features could get caught in machinery or cause severe fogging of eyewear). The face coverings must be kept clean and sanitary and changed when soiled, contaminated, or damaged.
5. **Physical Distancing:** Physical distancing will be used, to the extent feasible, as advised by guidance from State Department of Health or the Centers for Disease Control and Prevention, as applicable.

   In situations where prolonged close contact with other individuals is likely, use the following control methods: (Note to employer: Check off the controls you intend to use and add any additional controls not listed here.)

   - restricting or limiting customer or visitor entry;
   - limiting occupancy;
   - allowing only one person at a time inside small enclosed spaces with poor ventilation;
   - reconfiguring workspaces;
   - X physical barriers;
   - X signage;
   - X floor markings;
   - telecommuting;
   - remote meetings;
   - preventing gatherings;
   - restricting travel;
   - creating new work shifts and/or staggering work hours;
   - X adjusting break times and lunch periods;
   - delivering services remotely or through curb-side pickup;
   - _____
   - _____
   - _____
6. **Hand Hygiene:** To prevent the spread of infection, employees should wash hands with soap and water for at least 20 seconds or use a hand sanitizer with at least 60% alcohol to clean hands BEFORE and AFTER:
   - Touching your eyes, nose, or mouth;
   - Touching your mask;
   - Entering and leaving a public place; and
   - Touching an item or surface that may be frequently touched by other people, such as door handles, tables, gas pumps, shopping carts, or electronic cashier registers/screens.

   Because hand sanitizers are less effective on soiled hands, wash hands rather than using hand sanitizer when your hands are soiled.
7. **Cleaning and Disinfection:** See Section V of this plan.

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8. **"Respiratory Etiquette":** Because infectious diseases can be spread by droplets expelled from the mouth and nose, employees should exercise appropriate respiratory etiquette by covering nose and mouth when sneezing, coughing or yawning.

9. **Special Accommodations for Individuals with Added Risk Factors:** Some employees, due to age, underlying health condition, or other factors, may be at increased risk of severe illness if infected. Please inform your supervisor or the HR department if you fall within this group and need an accommodation.

B. ADVANCED CONTROLS DURING AN OUTBREAK

For activities where the Minimum Controls alone will not provide sufficient protection for employees, additional controls from the following hierarchy may be necessary. Employers should determine if the following are necessary:

1. Elimination: Employers should consider the temporary suspension or elimination of risky activities where adequate controls could not provide sufficient protection for employees. Examples include:

- Stop indoor dining;
- Limit to takeout;
- Limit pickup to curb-side or similar means;
- Discontinue buffets and self-serve beverage or food stations.

2. Engineering Controls: Employers should consider appropriate controls to contain and/or remove the infectious agent, prevent the agent from being spread, or isolate the worker from the infectious agent. Examples of engineering controls include:

   i. General Ventilation:
      - Increasing the percentage of fresh air introduced into air handling systems;
      - Avoiding air recirculation;
      - Utilize air filters with rating of Minimum Efficiency Reporting Value (MERV) 13 or higher, if compatible with the HVAC system(s). If MERV–13 or higher filters are not compatible with the HVAC system(s), use filters with the highest compatible filtering efficiency for the HVAC system(s);
      - If fans are used in the facility, arrange them so that air does not blow directly from one worker to another. Remove personal fans as necessary but keep heat hazards in mind and address in other methods if appropriate; and
      - Air purifiers.

   ii. Natural Ventilation, for example:
      - Opening outside windows and doors to create natural ventilation; and
      - Opening windows on one side of the room to let fresh air in and installing window exhaust fans on the opposite side of the room so that they exhaust air outdoors. *(Note: This method is appropriate only if air will not blow from one person to another.)*

   iii. Install automatic disinfection systems (e.g., ultraviolet light disinfection systems).

   iv. Install cleanable barriers such as partitions and/or clear plastic sneeze/cough guards.

   v. Modify the alignment of workstations, so that workers are at separated in all directions; and

   vi. Install hand washing or sanitizing stations throughout facility.

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Subject to changes based on operations and circumstances surrounding the infectious disease, engineering controls that are anticipated to be used are listed in the following table:

Engineering Controls Utilized/Location:
-Increase the percentage of air introduced into HVAC systems
-Avoid air recirculation where possible
-If using fans, ensure they do not blow air directly from one person to another
-Maximize natural ventilation by opening windows and doors when weather permits and it is safe to do so

Note to Employer: One of the best ways to reduce exposure to infectious agents is to improve ventilation. The aim is to deliver more "clean air" into an occupied area and exhaust the contaminated air to a safe location. In some cases, the air may have to be filtered before it enters the work area and/or before it is exhausted. Direct the contaminated air away from other individuals and from the building's fresh air intake ports. Consult your ventilation system's manufacturer or service company to determine if improvements are possible for your system.

3. "Administrative Controls" are policies and work rules used to prevent exposure. Examples include:
   - Disinfecting procedures for specific operations;
   - Not shaking out soiled laundry;
   - Prohibit eating and drinking in the work area;
   - Limit or discourage handling of cash;
   - Do not refill cups that have been used;
   - Do not pack leftovers for diners, rather provide the to-go box for the diner to pack.
   - Employee training;
   - Identify and prioritize job functions that are essential for continuous operations;
   - Cross-train employees to ensure critical operations can continue during worker absence;
   - Limit the use of shared workstations;
   - Post signs reminding employees of respiratory etiquette, masks, handwashing;
   - Rearrange traffic flow to allow for one-way walking paths;
   - Provide clearly designated entrance and exits;
   - Provide additional short breaks for handwashing and cleaning;
   - Establishing pods or cohorts working on same shift;
   - Clean equipment prior to handoff;
   - Limit attendance of in-person meetings (pre-shift meeting and safety meetings). Host the meetings outdoors;
   - Develop procedure for curb-side product pick up that is contactless;
   - Develop, communicate, and enforce a protocol for diners to wear face coverings.

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Subject to changes based on operations and circumstances surrounding the infectious disease, the following specific administrative controls are anticipated to be used:

Administrative Controls Utilized/Location:
-Establish clear protocols for employees to report symptoms or positive test results; Require immediate isolation of any symptomatic individuals on site.
-Maintain a minimum of six feet distance between individuals whenever possible. Implement staggering shifts, remote work, or telecommuting where feasible. Limit occupancy in small, enclosed spaces with poor ventilation.
-Promote proper coughing/sneezing etiquette. Educate employees on frequent and proper handwashing.
-Train employees on the signs and symptoms of airborne infectious diseases, proper hygiene, use of PPE, and reporting procedures. Inform employees about anti-retaliation measures for reporting violation or concerns.

4. 10. Personal Protective Equipment (PPE) are devices like eye protection, face shields, respirators , , and gloves that protect the wearer from infection. PPE will be provided, used and maintained in a sanitary and reliable condition at no cost to the employee. The PPE provided to an employee will be based on a hazard assessment for the workplace. The following PPE that are anticipated to be used are in the following table:

PPE Required - Activity Involved/Location:
-Face coverings - Provide and require employees to wear appropriate face covering (surgical masks, KN95, N95)
-Gloves - Provide gloves as needed for tasks involving contact with potentially contaminated surfaces or individuals.
-Training - Provide training on proper storage and disposal of all required PPE

1 The use of respiratory protection, e.g. an N95 filtering facepiece respirator, requires compliance with the OSHA Respiratory Protection Standard 29 CFR 1910.134 or temporary respiratory protection requirements OSHA allows for during the infectious disease outbreak.

2 Respirators with exhalation valves will release exhaled droplets from the respirators. Respirators are designed to protect the wearer. Surgical masks and face coverings, which are not respirators, are designed to protect others, not the wearer.

C. EXPOSURE CONTROL READINESS, MAINTENANCE AND STORAGE:

The controls we have selected will be obtained, properly stored, and maintained so that they are ready for immediate use in the event of an infectious disease outbreak and any applicable expiration dates will be properly considered.

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III. HOUSEKEEPING DURING A DESIGNATED OUTBREAK

A. Disinfection Methods and Schedules

Objects that are touched repeatedly by multiple individuals, such as door handles, light switches, control buttons/levers, dials, levers, water faucet handles, computers, phones, or handrails must be cleaned frequently with an appropriate disinfectant. Surfaces that are handled less often, or by fewer individuals, may require less frequent disinfection.
The disinfection methods and schedules selected are based on specific workplace conditions.

The New York State Department of Environmental Conservation (NYSDEC)and the Environmental Protection Agency (EPA) have compiled lists of approved disinfectants that are effective against many infectious agents (see **dec.ny.gov** and **epa.gov/pesticide-registration/selected-epa-registered-disinfectants**). Select disinfectants based on NYSDOH and CDC guidance and follow manufacturer guidance for methods, dilution, use, and contact time.

B. Adjustments to Normal Housekeeping Procedures

Normal housekeeping duties and schedules should continue to be followed during an infectious disease outbreak, to the extent practicable and appropriate consistent with NYSDOH and/or CDC guidance in effect at the time. However, routine procedures may need to be adjusted and additional cleaning and disinfecting may be required.

Housekeeping staff may be at increased risk because they may be cleaning many potentially contaminated surfaces. Some housekeeping activities, like dry sweeping, vacuuming, and dusting, can resuspend into the air particles that are contaminated with the infectious agent. For that reason, alternative methods and/or increased levels of protection may be needed.

Rather than dusting, for example, the CDC recommends cleaning surfaces with soap and water before disinfecting them. Conducting housekeeping during "off" hours may also reduce other workers' exposures to the infectious agent. Best practice dictates that housekeepers should wear respiratory protection. See **cdc.gov** for more guidance.

C. If an employee develops symptoms of the infectious disease at work, it is ideal to isolate the area in accordance with guidance issued by NYSDOH or the CDC, before cleaning and disinfecting the sick employee's work area. This delay will allow contaminated droplets to settle out of the air and the space to be ventilated.

D. As feasible, liners should be used in trash containers. Empty the containers often enough to prevent overfilling. Do not forcefully squeeze the air out of the trash bags before tying them closed. Trash containers may contain soiled tissue or face coverings.

IV. INFECTION RESPONSE DURING A DESIGNATED OUTBREAK

If an actual, or suspected, infectious disease case occurs at work, take the following actions:

- Instruct the sick individual to wear a face covering and leave the worksite and follow NYSDOH/CDC guidance.
- Follow local and state authority guidance to inform impacted individuals.

V. TRAINING AND INFORMATION DURING A DESIGNATED OUTBREAK

A. The CEO or the VP of Operations will verbally inform all employees of the existence and location of this Plan, the circumstances it can be activated, the infectious disease standard, employer policies, and employee rights under the New York State Labor Law 218-b. (Note: training need not be provided to the following individuals: any individuals working for staffing agencies, contractors or subcontractors on behalf of the employer at any individual work site, as well as any individual delivering goods or transporting people at, to or from the work site on behalf of the employer, where delivery or transport is conducted by an individual or entity that would otherwise be deemed an employer under this chapter)

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B. When this plan is activated, all personnel will receive training which will cover all elements of this plan and the following topics:

1. The infectious agent and the disease(s) it can cause;
2. The signs and symptoms of the disease;
3. How the disease can be spread;
4. An explanation of this Exposure Prevention Plan;
5. The activities and locations at our worksite that may involve exposure to the infectious agent;
6. The use and limitations of exposure controls
7. A review of the standard, including employee rights provided under Labor Law, Section 218-B.

C. The training will be

1. Provided at no cost to employees and take place during working hours. If training during normal work hours is not possible, employees will be compensated for the training time (with pay or time off);
2. Appropriate in content and vocabulary to your educational level, literacy, and preferred language; and
3. Verbally provided in person or through telephonic, electronic, or other means.

VI. PLAN EVALUATIONS DURING A DESIGNATED OUTBREAK

The employer will review and revise the plan periodically, upon activation of the plan, and as often as needed to keep up-to-date with current requirements. Document the plan revisions below:

Plan Revision History

Date	Reviewed and Revised by	Major Changes		Approved By
July 2025	The CEO	Plan Adopted	Enter date the original plan is created.	The CEO
		Staff Trained	Enter date the plan is made available, posted, and staff trained	
		Plan Revised		
		Staff Trained	Enter date the revised plan is made available, and staff updated to changes	
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VII. RETALIATION PROTECTIONS AND REPORTING OF ANY VIOLATIONS

No employer, or his or her agent, or person, , acting as or on behalf of a hiring entity, or the officer or agent of any entity, business, corporation, partnership, or limited liability company, shall discriminate, threaten, retaliate against, or take adverse action against any employee for exercising their rights under this plan, including reporting conduct the employee reasonably believes in good faith violates the plan or airborne infectious disease concerns to their employer, government agencies or officials or for refusing to work where an employee reasonably believes in good faith that such work exposes him or her, other workers, or the public to an unreasonable risk of exposure, provided the employee, another employee, or representative has notified the employer verbally or in writing, including electronic communication, of the inconsistent working conditions and the employer's failure to cure or if the employer knew or should have known of the consistent working conditions.

Notification of a violation by an employee may be made verbally or in writing, and without limitation to format including electronic communications. To the extent that communications between the employer and employee regarding a potential risk of exposure are in writing, they shall be maintained by the employer for two years after the conclusion of the designation of a high risk disease from the Commissioner of Health, or two years after the conclusion of the Governor's emergency declaration of a high risk disease. Employer should include contact information to report violations of this plan and retaliation during regular business hours and for weekends/other non-regular business hours when employees may be working.

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SEXUAL HARASSMENT COMPLAINT FORM

New York State Labor Law requires all employers to adopt a sexual harassment prevention policy that includes a complaint form to report alleged incidents of sexual harassment.

If you believe that you have been subjected to sexual harassment or gender discrimination, you are encouraged, but not required, to complete this form and submit it to Human Resources (which may be contacted at hr@devocion.com or in person). No employee will be retaliated against for filing a complaint.

If you are more comfortable reporting verbally or in another manner, your employer should complete this form, provide you with a copy, and follow its sexual harassment prevention policy by investigating the claims as outlined at the end of this form.

For additional resources, visit: ny.gov/programs/combating-sexual-harassment-workplace

COMPLAINANT INFORMATION

Name:

Work Address: Work Phone:

Job Title: Email:

Select Preferred Communication Method: ☐Email ☐Phone ☐In person

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SUPERVISORY INFORMATION

Immediate Supervisor's Name:

Title:

Work Phone: Work Address:

COMPLAINT INFORMATION

1. Your complaint of sexual harassment is made about:

   Name: Title:

   Work Address: Work Phone:

   Relationship to you: ☐Supervisor ☐Supervisee ☐Co-Worker ☐Other (please specify)

2. Please describe what happened and include as many details as possible. You may use additional sheets of paper if necessary. If you have any relevant documents, please include them.

3. Date(s) sexual harassment occurred:

   Is the sexual harassment continuing? ☐Yes ☐No

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4. If possible, please list the name and contact information of any witnesses or individuals who may have information related to your complaint:

The last question is optional, but may help the investigation.

5. Have you previously provided information (verbal or written) about related incidents? If yes, when and to whom did you provide information?

This is not required, but if you have retained legal counsel and would like us to work with them, please provide their contact information.

Signature: _____ *Date:* _____